



Tort Law (9th edn)

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p. 403 15. Intentional interferences with the person

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Abstract

This chapter examines intentional interferences with the person, including the torts comprising trespass to the person—battery, assault and false imprisonment—the tort in *Wilkinson v Downton* [1897] and the statutory tort of harassment. The trespass to the person torts seek to protect an individual against an infringement of their personal or bodily integrity, that is, against the infliction, or fearing the infliction, of unlawful force (battery and assault) and the unlawful restriction of a person's freedom of movement (false imprisonment). The three trespass to the person torts have the same characteristics: the defendant must have intended both the conduct itself and consequences of their action; the defendant's action must cause direct and immediate harm; and they are actionable per se, that is, without proof of loss. The chapter also considers the tort in *Wilkinson v Downton*, which provides a remedy for physical and psychiatric harm deliberately caused by a false statement, and the Protection from Harassment Act 1997, which imposes both civil and criminal liability for harassing conduct.

Keywords: Keywords, tort law, battery, assault, false imprisonment, *Wilkinson v Downton*, physical harm, psychiatric harm, protection from harassment, liability

Problem question

Read this problem question carefully and keep it in mind while you are working through the chapter that follows. At the end of the chapter you will be able to apply what you have learnt to the problem question and advise the relevant parties.

Henry, Noah, Maeve and Quinn are sitting in the students' union bar discussing arrangements for the forthcoming 'Law Society Spring Ball'.

Thomas, Maeve's ex-boyfriend, walks by and says quietly to Henry, 'I'll get you! No one steals my girl and gets away with it'. Although Henry is not particularly upset by this, he decides to teach Thomas a lesson. When no one is looking, he deliberately trips Thomas up. Thomas falls over but is not hurt. He quickly jumps up and runs after Henry. Thomas hits Henry and pushes him away and Henry falls awkwardly and hits his head. As Maeve rushes to get a doctor, Thomas corners her and whispers, 'I miss you, let's try again'. She pushes him away.

Meanwhile Noah and Quinn have sneaked into the bar's storeroom. Thomas later notices the open door, and without checking whether there is anyone in there, locks the door. It remains locked until Rafe, the barman, comes on duty some time later and unlocks it.

Later that evening, Thomas calls Catherine, Henry's pregnant ex-girlfriend, who lives some distance away, and tells her Henry has been badly hurt. She takes the news very badly. Later that night, Thomas calls Maeve's mobile; as she is still at the hospital with Henry she does not answer it. By the time she checks her phone she has 12 missed calls.

Advise the parties.

15.1 Introduction

Consider the following examples:

→ *An infatuated student makes multiple phone calls to a classmate's mobile phone suggesting that they meet up.*

→ *A man is shopping with his 3-year-old daughter in the toy department of a large department store. They are both locked in when the store closes for the evening.*

→ *A woman enters a lift with a male colleague at work. He sidles up to her, standing very close (but not touching) and whispers that he likes her dress directly into her ear. They are alone in the lift.*

→ *A man sends private sexual images of his ex-partner to her friends and family and threatens to put them online.*

→ *A doctor delivers a healthy child after performing a caesarean section on the mother without her consent.*

All of these cases involve a possible infringement of an individual's personal or bodily integrity. As such the harm lies not in whether the defendant's actions have caused physical damage but rather in the violation of the claimant's right to be free from unjustifiable interference. Trespass to the person is made up of three torts: battery, assault and false imprisonment. These were defined by Goff LJ in *Collins v Wilcock* [1984] (at 1177) as laid out in **Table 15.1**.

Table 15.1 The trespass to the person torts

The trespass to the person torts		
Assault	Battery	False imprisonment
‘an act which causes another person to apprehend the infliction of immediate, unlawful force on his person’	‘the actual infliction of unlawful force on another person’	‘the unlawful imposition of constraint on another’s freedom of movement from a particular place’

In addition to these three torts, this chapter also considers the tort in *Wilkinson v Downton* [1897]. While assault and battery provide a remedy for those who fear, or who experience, the immediate infliction of unlawful physical force, the tort in *Wilkinson v Downton* provides a remedy for those who suffer physical or psychiatric injury *indirectly* as a result of another’s intentional conduct. Though the House of Lords’ decision in *Wainwright v Home Office* [2003] and the enactment of the Protection from Harassment Act 1997 have limited its role, it appears more recently to have had something of a revival and the rule continues to offer the possibility of recovery for harm suffered in circumstances not covered by the trespass torts, the 1997 Act or the tort of negligence.

Pause for reflection

The torts which comprise trespass to the person have close connections with the criminal law and, in particular, the offences found in the Offences Against the Person Act 1861. Indeed, we might think that sulphuric acid being placed into washroom hand dryers, threats of violence at a parish council meeting, a car deliberately running over a policeman’s foot or harassment of a former partner are more appropriately seen as criminal offences.¹ So why then does the law also recognise a civil action in these, and other, cases? And why would the victim wish to bring a claim?

↪ Think again about the purposes of tort law outlined in the introduction to the book. Many of the cases highlight abuses of, and discrepancies in, power—for example, between men and women, police officer and suspect, doctor and patient, and prisoner and the state. A civil action may, for example, be used to highlight a refusal of the Director of Public Prosecutions (DPP) to bring a criminal prosecution in a particular case or following an unsuccessful prosecution (see *Ashley v Chief Constable of Sussex Police* [2008]).² Given the continuing low number of *criminal* convictions in cases involving rape and other forms of sexual assault, the civil law might be invoked here to strategic effect (see e.g. *Lawson v Graves-Smith* [2006]; *IMX v Bicknell* [2024]).³ Do you think this would be a good idea? Think about the purpose of civil, as opposed to criminal, law as well as the remedies that are likely to be available.

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PLEASE NOTE: We explore the intersection of criminal and civil law throughout this chapter. A number of the cases we consider involve child sex abuse, domestic and intimate partner abuse and violence and/or sexual violence and assault. We understand that these may be upsetting to read and encounter. If you need to please do take a break and seek support from someone you trust.

Conventionally, the trespass to the person torts are described as having the same characteristics:

- (1) they must be committed intentionally;
- (2) they must cause direct and immediate ‘harm’;⁴ and
- (3) they are actionable per se, that is, without proof of loss. These characteristics distinguish the trespass to the person torts from the tort of negligence. Put simply, trespass compensates the claimant in relation to direct and intentional harm (e.g. being deliberately hit), while negligence compensates the claimant for unintentional or indirect harm (i.e. accidental injury).

15.1.1 A note on intention

p. 406 It is worth noting at the outset that the term ‘intention’ is ambiguous. It can describe two different aspects of a person’s conduct. First, we can speak of intentional *conduct*, that is, willed, voluntary action. The contrast here is with conduct which was out of the defendant’s control—for example, a spasm or when they are physically manipulated by someone else. Secondly, and more commonly, the language of intention is used in connection with the *consequences* of one’s willed actions—for example, to touch or hurt someone or to score a goal. In this sense, intention requires a particular state of mind or attitude in respect of the result of one’s conduct. Typically, one intends a particular consequence when one’s purpose is to bring about that consequence through one’s actions. The contrast here is with recklessness or negligence which involves, at most, an awareness of the risk that one’s conduct will bring a particular result without intending to cause such a result.

It is clear that the torts we are concerned with in this chapter require intention in the first sense. A defendant will not be liable if they were not in control of their actions at the relevant time. It is less clear if intention in the second sense is needed—that is, whether the defendant need intend the specific consequences of their actions (e.g. unlawful touching, or the claimant’s fear of such touching, in the case of battery and assault, respectively) or whether it is enough that the defendant was simply careless as to the possibility of the result occurring.

At one point it seemed that a trespass could be committed negligently (*Fowler v Lanning* [1959]). However, the Court of Appeal decision in *Letang v Cooper* [1965] marked a change in direction. In this case, the claimant (wishing to avoid restrictions imposed by the Law Reform (Limitation of Actions, etc) Act 1954, s 2(1))⁵ sued in trespass for injury caused by the defendant negligently driving his car over her legs as she sunbathed in the hotel car park more than three years earlier. In denying her claim, Lord Denning MR proposed that a clear

line be drawn between trespass and negligence: trespass requires that the defendant intended to touch the claimant, whereas ‘when the injury is not inflicted intentionally but negligently ... the only cause of action is in negligence and not trespass’ (at 240).⁶

This position was endorsed by the Court of Appeal in *Iqbal v Prison Officers Association* [2009], which held that ‘it is well established that all forms of trespass require an intentional act. An act of negligence will not suffice’ (Smith LJ at [71]). However, Smith LJ went on to hold that intention here also includes subjective recklessness, that is where the defendant *foresees* that their actions will have the relevant consequences (e.g. the application of force in the case of battery, the deprivation of the claimant’s liberty in that of false imprisonment) and goes ahead with those actions nonetheless (at [73]). On this understanding, the person who throws a stone in a crowded area not intending (i.e. setting out) to hit anyone *but knowing it is likely that someone may be hit* will be liable in the tort of battery.

Pause for reflection

While Smith LJ in *Iqbal* does much to clarify the mental element needed for the trespass to the person torts, some difficulties remain. First, the use of the phrase ‘intentional act’ is unhelpful and potentially misleading. As we saw previously, intention can be used in two senses: to describe action which is voluntary (rather than involuntary) or to describe a person’s attitude to certain consequences of their action (that their purpose was to bring about those consequences). ↩ So if A locks the door to a room, not knowing that B is inside, A’s locking of the door is intentional (in the first sense) even though A has no intention (in the second sense) to lock B in.

Because of this, saying there must be an ‘intentional act’ is ambiguous. We know from *Iqbal* that A does not falsely imprison B *unless* he intends to lock B in (or is aware that by locking the door he may lock B in but does this anyway). But then we would be better off making clear that what needs to be intended is *the imprisonment*—that is, A needs to lock the door with the objective of locking B in (or at least knowing that by locking the door this is likely to happen). Similarly, in battery what needs to be intended is not (simply) the defendant’s physical conduct—such as throwing a stone—but *the application of force*—the stone hitting someone (or knowing it is likely to hit someone and doing it anyway).

This relates to the other difficulty with the judgment: the view that subjective recklessness is a sufficient mental element for the trespass to the person torts. This aligns the law of torts with the criminal law offences of assault and battery, where it has long been clear that subjective recklessness is sufficient mens rea (*R v Venna* [1976]). Again, however, the courts could have made this point more clearly. In *Iqbal*, Smith LJ stated that ‘in the criminal law a reckless disregard of the consequences is taken as sufficient to satisfy the requirement of intention’, before holding that the same should go for the law of torts (at [73]). Not only does this misdescribe the criminal law, where the courts have repeatedly stressed the difference between intention and recklessness, but also it is clear that there is

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a difference between trying to hit someone and doing something which one knows may hit someone. As such, the clearer formulation would be to say that trespass requires intention or recklessness, rather than pretending that recklessness is a type of intention.

15.2 Battery

A battery is the intentional application of unlawful force to another person: typically A stabs B; X shoots Y; Luca punches Mo. It is the ‘physical interference with’ or ‘invasion of’ the claimant’s body or person (Buxton LJ in *Home Office v Wainwright and another* [2001] at [67]). As we shall see, there is no need to show that the defendant caused the claimant actual harm or injury by touching them, or indeed that they intended to cause (or were reckless as to causing) them harm or injury. Any unwanted physical touching—from a pat on the back to a violent blow to the head—can amount to a battery. Nor does it matter *why* the touching occurred; the fact that the contact was the result of a practical joke or that it was intended to convey affection is irrelevant: ‘an unwanted kiss may be a battery although the defendant’s intention may be most amiable’ (*R v Chief Constable of Devon and Cornwall, ex p Central Electricity Generating Board* [1982] at 471).

Fortunately, this somewhat broad prohibition of unwanted conduct is qualified. In order to be unlawful, the force must exceed ‘physical contact which is generally acceptable in the ordinary conduct of daily life’ and must be applied to the claimant by immediate and direct means (*Collins v Wilcock* at 1177). An actionable battery therefore requires:

- (1) the intentional application of unlawful force (the touching or contact);
- (2) which is direct and immediate; and
- (3) for which the defendant has no lawful justification or excuse (i.e. no defence).

p. 408 15.2.1 Intentional application ...

The trespass torts are typically said to require intention on the part of the defendant. However, as we have seen, the word ‘intention’ can be used in different ways. So, the voluntary throwing of a stone is an *intentional act*, whether or not the thrower *intends to hit* anyone. What is clear is that there needs to be more than an intentional throwing. There is no battery unless the stone-thrower intends to hit someone with the stone or is, at least, aware that the stone might hit someone and throws it nonetheless. The mental element necessary for the tort of battery requires either:

- (1) an *intention* (i.e. setting out) to apply force to another person; or
- (2) *recklessness* as to (i.e. foreseeing the likelihood of) one’s actions causing the application of force to another person.

There are two further points to make. First, if the defendant intends to make contact with A but instead touches B, the tort of battery will be committed against B. So, if Luca while trying to hit Will hits Catherine instead, she has a claim in battery against Luca by virtue of the rule of ‘transferred intent’ (*Livingstone v Ministry of Defence* [1984]). Secondly, the defendant will be liable to compensate the claimant for any harm suffered as a result of the unlawful touching even if he did not intend to cause the claimant harm, or the possibility of causing harm never crossed their mind. In *Williams v Humphrey* [1975], the defendant pushed the claimant into a swimming pool causing him to fall awkwardly and break his ankle. The defendant argued that he did not intend to hurt the claimant, but this did not matter. He had clearly intended to touch the claimant and there is no further requirement of intending any injury that follows. Similarly, a doctor who performs a medical operation without the patient’s consent will commit a battery, even though their intention is to help rather than harm the patient.

There is no a battery if the defendant acts involuntarily—for example, if Riley trips over and stumbles into Luca (though, if Will pushes Riley into Luca, he has committed a battery against both Riley and Luca (*Gibbon v Pepper* [1695])). However, a battery can be committed, even if the original action by the defendant was involuntary, if the defendant has the opportunity to stop inflicting the unlawful force and fails to do so. In *Fagan v Metropolitan Police Commissioner* [1969], a police officer was directing the defendant as to where to park when the defendant accidentally drove his car on to the police officer’s foot. Despite being aware of what he had done, the defendant deliberately left his car on the officer’s foot for a period of time, causing injury to his toe. The defendant was found guilty of criminal assault. Though Fagan’s initial—unintentional—action of stopping his car on the constable’s foot did not amount to a (criminal) assault, his failure to move his car, once he had knowledge of his car’s position and until the police officer had shouted ‘Get off my foot’ several times, did. Though this is a criminal case, the same reasoning would apply, by analogy, in the civil courts: the defendant’s failure to move his car also fulfils the intention requirement of the tort of battery.

15.2.2 ... of unlawful touching

p. 409 Applied literally, battery covers all forms of contact—with the result that someone would commit a battery simply by tapping a person on their shoulder to get their attention. It would clearly be nonsense if there were an actionable battery in such circumstances. ↵ Nevertheless, whilst some limitation on the scope of battery is common sense, the courts have experienced difficulties in finding a theoretical basis as to where to draw the line between unlawful and acceptable ordinary everyday contact.

An early, somewhat narrow, attempt to distinguish lawful from unlawful touching was made by Lord Holt CJ in *Cole v Turner* [1704], who stated that ‘the least touching of another in anger is a battery’ (at 149). Thus, in *Wilson v Pringle* [1987], the Court of Appeal suggested that in order for the defendant’s actions to be unlawful, and for there to be an actionable battery, there needed to be ‘hostile intent’. The claimant, a 13-year-old boy, suffered serious injury to his hip when the defendant, a fellow pupil, pulled his school bag off his shoulder in an act of horseplay. The defendant’s liability turned on whether his actions had, as a matter of fact, been ‘hostile’ rather than a schoolboy prank.

This is not particularly helpful. All it does is restate the question that needs to be answered: what is hostile intent? In *Wilson v Pringle*, the Court of Appeal equates ‘hostility’ with ‘acting unlawfully’ (at 253). On this view, Edwin Peel and James Goudkamp suggest, hostile intent appears to mean ‘little more than that the defendant has interfered in a way to which the claimant might object’.⁷ But what is ‘hostile’ to one person may seem quite the opposite to another. When does an overenthusiastic slap on the back become hostile? And is, to use Lord Goff’s example, a surgeon’s mistaken, but non-hostile, amputation of a patient’s leg not therefore a battery?

A better approach is that of Goff LJ in the earlier case *Collins v Wilcock* [1984], who stated that touching will only amount to a battery where it does not fall within the category of physical contacts ‘generally acceptable in the ordinary conduct of daily life’ (at 1177). What is considered generally acceptable will depend on the context. So, while you wouldn’t expect to be pushed while in the queue at the Post Office, being jostled at the bar in a busy nightclub is more likely to be seen as something about which people cannot reasonably complain and so considered ‘generally acceptable’.

Although this approach was criticised as ‘not practical’ by Croom-Johnson LJ in *Wilson v Pringle* (at 252), it won the day when Lord Goff restated his views and rejected the hostility requirement once he had joined the House of Lords in the case of *Re F (Mental Patient: Sterilization)* [1990]:

it has recently been said that the touching must be ‘hostile’ to have that effect ... I respectfully doubt whether that is correct. A prank that gets out of hand; an over-friendly slap on the back; surgical treatment by a surgeon who mistakenly thinks that the patient consented to it—all these things may transcend the bounds of lawfulness, without being characterised as hostile. (at 73)

Pause for reflection

In fact, Lord Goff’s notion of generally acceptable touching falls foul of the same definitional difficulties as Croom-Johnson LJ’s in *Wilson v Pringle*. What constitutes contact ‘generally acceptable in the ordinary conduct of human life’ is just as difficult to define as hostile contact. Consider, for example, the over-familiar male work colleague who greets everyone—male and female—with a ‘friendly’ hug—does this constitute acceptable or unacceptable behaviour? Would it make a difference if the colleague was female?

☛ Joanne Conaghan and Wade Mansell may well think so. They argue that Lord Goff’s notion of ‘generally acceptable conduct’ is open to feminist charges of bias, as male perceptions of acceptable conduct are hidden under a guise of neutrality, thereby precluding the recognition of women’s experiences and their divergence from those of men: ‘what men may see as a compliment, women often experience as an insult; what men offer as a gesture of intimacy and friendship, women may perceive as an invasion of privacy’.⁸ A woman who pursues a battery claim in circumstances that involve ‘minor’ touching, a ‘wolf-whistle’ (a distinctive two-toned whistle made to indicate approval of something (often a woman)) or similar, Conaghan and Mansell suggest, is likely to be regarded as petty or vindictive: ‘her sense of insult and embarrassment discounted as an “over-reaction”,

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precisely because the original act is perceived as benign'.⁹ Do you agree? Conaghan and Mansell were writing in the late 1990s; do you think a woman bringing a similar claim in 2023 would have the same experience? Think about the impact of #MeToo and other campaigns on understandings of sexual assault and harassment.

15.2.3 Direct and immediate force

Finally, the unlawful touching must be the direct and immediate result of the defendant's actions. A common example used to illustrate this point is the distinction between the claim of a person who is hit by a log as it is deliberately thrown onto the road and the claim of someone who later trips over it. While the former lies in battery, the latter is said to be restricted to the tort of negligence (*Reynolds v Clarke* [1725]). In practice, however, it seems the courts have interpreted the 'directness' requirement extremely flexibly. In *Scott v Shepherd* [1773], the defendant who had thrown a lit squib (firework) into a marketplace was liable in battery, despite the fact that two stallholders had caught the squib and thrown it on to protect themselves and their wares before it had eventually exploded in the claimant's face, injuring his eye. Similarly, the defendant in *DPP v K (A Minor)* [1990], a schoolboy aged 15, was found liable for the injuries caused to another pupil as a result of his pouring sulphuric acid into the upturned nozzle of an electronic hand-drying machine, and which had subsequently been blown onto the pupil's face, leaving a permanent scar.¹⁰ In both these cases the unlawful force appears to be a consequential rather than direct result of the defendant's actions. Nevertheless, it appears that the shortness of time between the act and the contact is sufficient to satisfy the 'direct and immediate' requirement in battery. On this basis Alastair Mullis and Ken Oliphant argue that the directness requirement serves little purpose, and that it is likely that a person who trips over a log left in the road (assuming it happened relatively quickly after the log was thrown and the necessary intention could be established) would have a claim in trespass (as well as negligence).¹¹

p. 411 15.2.4 Lawful justification or excuse

Once it has been established that the defendant has intentionally touched the claimant and that the contact is both unlawful and direct and immediate, the defendant will have committed a battery unless she has a lawful justification or excuse for her actions. As these justifications and excuses are also applicable to the torts of assault and false imprisonment, they are discussed at **section 15.5**, after we have considered the elements of these torts.

Test your understanding by trying this section's self-test questions. <<https://iws.oup.support.com/embed/access/content/horsey9e-student-resources/horsey9e-self-test-questions-15-2>>.

15.3 Assault

Consider again the example of the woman in the lift at the beginning of the chapter. Clearly, there is no battery—but could the man’s actions constitute an assault?

Defined by Goff LJ in *Collins v Wilcock* as ‘an act which causes another person to apprehend the infliction of immediate, unlawful force on his person’ (at 1177), assault protects the claimant who fears or apprehends a battery. Unlike battery, the wrong of assault lies not in the unwanted physical contact, but in the *anticipation* of such contact. The tort of assault is committed where the defendant’s actions cause the claimant to reasonably apprehend the direct and immediate infliction of force upon their person. Assault and battery will usually, but not always, occur together: unless, for example, the assailant changes their mind, misses their target or a third party intervenes, the immediate anticipation of a battery (an assault) will almost always be followed by a battery (actually being hit). Thus, if Luca points a gun at Will he has committed an assault. It makes no difference whether the gun is loaded (assuming Will does not know this is the case) as he has reason to apprehend a battery (*R v St George* [1840]). But Luca will only commit a battery if he shoots the gun and hits Mo. If Luca’s aim is poor and he misses Mo, there will be no battery—but there will be an actionable assault. Equally, not every threat of a battery will give rise to an assault. If Luca says to Mo, ‘I’m going to shoot you dead’, but Thomas knows that Luca has no means of doing this, it is unlikely that Luca’s threat will satisfy the requirements of an assault. Similarly, if Luca shoots Will while he is asleep, his actions will constitute a battery, but not an assault.

An actionable assault requires that:

- (1) the defendant intends that the claimant apprehends the immediate and direct application of unlawful force;
- (2) the claimant reasonably apprehends the immediate and direct application of unlawful force;
- (3) for which the defendant has no lawful justification or excuse.

15.3.1 Intention

The same issues relating to the difficulties in establishing the meaning of ‘intention’ discussed earlier also apply here. However, it is clear that the defendant must have acted voluntarily, and have intended to cause the claimant to apprehend the application of immediate unlawful force, or be subjectively reckless as to the possibility that their actions will cause the claimant to apprehend the application of such force.

p. 412 15.3.2 Reasonable apprehension ...

For there to be an assault the claimant must reasonably anticipate or expect the application of unlawful force—that is, the infliction of a battery. Thus, if Rafe creeps up behind Luca and strikes him, Rafe has committed a battery, but not an assault. It would only be an assault if Luca knew Rafe was about to hit him. Conversely, if

Luca sees Rafe coming and moves so that he successfully avoids Rafe's blow, Rafe will have committed an assault but no battery. The test of reasonable apprehension is an objective one. It does not matter whether the particular claimant was overly timid or if they could have defended themselves successfully.

***Stephens v Myers* (1830) 4 C&P 350 Assizes**

The claimant was chairing a parish council meeting, sitting at the head of the table. The defendant was also at the table with about six or seven people between him and the claimant. The defendant was asked to leave the meeting (he had become disruptive during the course of the meeting's discussions), in response to which he threatened the claimant with violence, advancing towards the claimant with a clenched fist. Fortunately, his approach was stopped by the timely intervention of the churchwarden and he was never within striking distance of the claimant. The claimant's apprehension of a battery was held to be reasonable and so the defendant was liable for assault, though the jury clearly thought the claimant was somewhat timid—their award of one shilling was trivial, even in 1830.

15.3.3 ... of immediate and direct application of unlawful force

In order for there to be an assault the claimant must reasonably apprehend the infliction of immediate and direct unlawful force. If she knows that the defendant is not in a position to do this then there can be no assault: 'It is not every threat, when there is no actual violence, that constitutes an assault, there must, in all cases, be the means of carrying that threat into effect' (*Stephens v Myers*). This was confirmed in *Thomas v National Union of Miners (South Wales Area)* [1986], and by the Court of Appeal in *Mbasogo v Logo Ltd* [2006].

***Thomas v National Union of Miners (South Wales Area)* [1986] Ch 20 (Ch D)**

During the 1984–5 miners' strike,¹² a group of working miners sought an interlocutory injunction against the National Union of Mineworkers to prevent its members (who were striking miners) from verbally abusing and harassing them as they went to work. Each day a crowd of some 50–70 picketers gathered at the colliery gates as the working miners entered the workplace in vehicles surrounded by a police guard.

Dismissing their claim, Scott J held that the actions of the striking miners did not meet the requirements of immediacy or directness necessary to establish an assault: 'the working miners are in vehicles and the pickets are held back from the vehicles, I do not understand how even the most violent of threats or gestures could be said to constitute an assault' (at 62).

p. 413 ↵ However, this is not to say that there can never be an assault where the defendant lacks the immediate means to put it into effect. A bank robber who points a gun at the cashier and threatens to shoot unless his demands are met commits an assault—whether or not the gun is loaded—so long as the cashier reasonably believes that the gun is loaded and hence that the threat could be carried out.

Traditionally, the requirement of directness meant that threatening words needed to be accompanied by a physically intimidating gesture: ‘No words or singing are equivalent to an assault’ (*R v Meade and Belt* [1823]). Though a threatening gesture can be negated by words suggesting that an assault is *not* imminent. Thus in *Tuberville v Savage* [1669] there was no assault when the defendant placed his hand on his sword and stated, ‘[i]f it were not assize time [that is, the time when judges from the King’s Bench were visiting] I would not take such language from you’. As it was assize time, he was, in fact, stating that he *did not intend* to strike the claimant. The key point remains whether the claimant reasonably apprehended the infliction of immediate and direct force. Circumstances in which the defendant’s words negate their threatening gestures are distinguishable from conditional threats where the claimant is merely given an option by the defendant to avoid violence. This is clearly an assault. It is no excuse for the highwayman (a robber who stole from travellers) to claim that his victims had a viable alternative option when he said, ‘Stand and deliver, your money or your life’.

Highwaymen aside, the reason for judicial emphasis on gestures rather than words, Conaghan and Mansell suggest, lies in a concern to ‘distinguish a mere insult (for which there is generally no legal remedy) from a serious and immediate threat’;¹³ to balance the conflicting interests of freedom of speech and public order. It follows, they continue, ‘that the harasser who makes obscene remarks, “amorous” proposals or embarrassing or intimate comments has traditionally not been significantly inhibited by the tort of assault from doing so. There is, after all, no harm in asking’¹⁴—though there may now be a claim under the Protection from Harassment Act 1997.

The House of Lords’ decision in *R v Ireland* [1998]—another criminal law case with applicability to the law of tort—ended any doubt over whether mere words could amount to an assault.

***R v Ireland* [1998] AC 147 (HL)**

Three women had suffered psychiatric illness as a result of being subjected to a lengthy period of harassment by the defendant, including repeated silent telephone calls,¹⁵ often at night. Lord Steyn in the House of Lords rejected the proposition that an assault could never be committed by words alone: ‘A thing said is also a thing done. There is no reason why something said should be incapable of causing apprehension of immediate personal violence, e.g. a man accosting a woman in a dark alley saying “come with me or I will stab you”’ (at 162).

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Liability, therefore, depends on whether the claimant in the circumstances reasonably believed that the oral threat could be carried out in the sufficiently near future to qualify as an ↵ immediate threat of personal violence. On the facts, the court was prepared to accept that silence would be capable of giving rise to such fears:

Just as it is not true to say that every blow which is struck is an assault ... so also it is not true to say that mere words or gestures can never constitute an assault. It all depends on the circumstances ... The words and gestures must be seen in their whole context. (Lord Hope at 166)

Pause for reflection

Despite the saying 'sticks and stones may break my bones, but words will never hurt me', this seems to require an unduly high level of courage by the recipient of the verbal threats. As Lord Steyn notes at the beginning of his opinion:

it is easy to understand the terrifying effect of a campaign of telephone calls at night by a silent caller to a woman living on her own. It would be natural for the victim to regard the calls as menacing. What may heighten her fear is that she will not know what the caller may do next. The spectre of the caller arriving at her doorstep bent on inflicting personal violence on her may come to dominate her thinking. After all, as a matter of common sense, what else would she be terrified about? (at 152)

Do you agree with Lord Steyn's reasoning here? Would it make a difference if the calls had been made to the claimants' mobile phones? Or by text? Or via Facebook or X? In these circumstances, the caller may not know the claimant's precise location. Should this matter? After all, in such cases the claimant may still be significantly distressed or worried. Does the caller's inability (subject to any evidence to the contrary) to pinpoint a claimant's exact location (which, of course, could still be in their own home) make their fear of *imminent* and direct force unreasonable?

It may be that in such circumstances the claimant finds it harder to fulfil the requirements necessary to establish the tort of assault but, as we shall see, they may nonetheless still be able to recover using the tort in *Wilkinson v Downton* or the Protection from Harassment Act 1997.

15.3.4 Lawful justification or excuse

Again, even if the other elements of the tort have been made out, there will be no actionable assault if the defendant has a lawful justification or excuse for her actions.¹⁶

Test your understanding by trying this section's self-test questions <<https://iws.oup.support.com/embed/access/content/horsey9e-student-resources/horsey9e-self-test-questions-15-3>>.

15.4 False imprisonment

p. 415 The tort of false imprisonment sits alongside battery and assault as the third in the family of torts comprising trespass to the person. Goff LJ in *Collins v Wilcock* [1984] defines false imprisonment as involving the 'unlawful imposition of constraint on another's freedom of movement from a particular place' (at 1177). As such, 'imprisonment' extends to any action ↵ that deprives the claimant of their freedom of movement—so long as there is a *complete* restriction of this freedom and the defendant has no lawful justification or excuse the claimant will have been falsely imprisoned. Like the other trespass torts it is actionable per se. There is no need to show force, though a claimant must not be taken to be consenting to the imprisonment simply because they do not resist.

***R (on the application of Jalloh (formerly Jollah)) v Secretary of State for the Home Department* [2020] UKSC 4 (SC)**

The claimant, a Liberian national named Ibrahima Jalloh, had been placed under an unlawful curfew after being released from an immigration detention centre on bail. These included a requirement to live at a specified address in Sunderland, to submit to electronic tagging and to stay at home each night between the hours of 11.00 pm and 7.00 am. This had lasted a total of 891 days. He sought damages for false imprisonment, arguing that he had been confined to his house without any legal basis for long periods of time. The Supreme Court, upholding the decision of the first instance judge and the Court of Appeal, agreed:

The essence of imprisonment is being made to stay in a particular place by another person. The methods which might be used to keep a person there are many and various. They could be physical barriers, such as locks and bars. They could be physical people, such as guards who would physically prevent the person leaving if he tried to do so. They could also be threats, whether of force or of legal process ... In this case there is no doubt that the defendant defined the place where the claimant was to stay between the hours of 11.00 pm and 7.00 am. There was no suggestion that he could go somewhere else during those hours without the defendant's permission. This is not a case like *Bird v Jones* where the claimant could cross the bridge by another route or *Robinson v Balmain New Ferry Co Ltd* where he had agreed to go onto the wharf on terms that he could only get out if he paid a penny. (Lady Hale at [24]–[25])

Nor would the fact that the claimant had at times ignored his curfew (for example, to attend family court proceedings) make a difference to his situation while he was obeying it.

Like the prisoner who goes absent from his open prison, or the tunneller who gets out of the prison camp, he is not imprisoned while he is away. But he is imprisoned while he is where the defendant wants him to be. (Lady Hale at [26])

In order for there to be an actionable claim for false imprisonment:

- (1) the defendant must intend to completely restrict the claimant's freedom of movement;
- (2) without lawful justification or excuse.

15.4.1 Intention

As Smith LJ held in *Iqbal*, false imprisonment, like the other trespass torts, requires an intentional act. However, as we have seen, this requirement is a little misleading. To use Smith LJ's example:

p. 416 If a security guard in an office block locks the door to the claimant's room believing the claimant has gone home for the night and not realising that he is in fact still inside the room, he has committed a deliberate act. However, he did not intend to confine the claimant. He may well be guilty of negligence because he did not check whether the room was empty but he would not be guilty of the intentional tort of false imprisonment. (at [72])

In this example, the fact that the locking of the door was intentional is not enough. The defendant must intend thereby to confine the claimant to that room. However, it is also clear from *Iqbal* that subjective recklessness will also suffice, so that there will be liability even where the defendant doesn't set out to imprison the claimant, but he is nonetheless aware that this is a likely consequence of his actions. So if, in the previous example, the defendant locked the door suspecting (and not caring) that the claimant may still be inside then, though he doesn't strictly *intend* to imprison him, he is nonetheless liable for false imprisonment.¹⁷

While the defendant needs to intend to restrict the claimant's freedom of movement, it is not necessary for the defendant to intend to do so *unlawfully*. In *R v Governor of Brockhill Prison, ex p Evans (No 2)* [2001], for example, the claimant was lawfully imprisoned for various criminal offences. However, the prison governor miscalculated her release date with the consequence that she was imprisoned for longer than she should have been. Her claim for false imprisonment was successful, even though the prison governor clearly did not intend to hold the claimant for any longer than the lawful duration. Similarly, in *Esegbona v King's College Hospital Foundation NHS Trust* [2019], the NHS Trust was found to have falsely imprisoned a patient for almost five months. Mrs Esegbona had suffered heart failure. After almost three months of treatment in the hospital's Intensive Care Unit, she wished to return home. The doctors believed her to be confused and suffering from cognitive impairment and communication difficulties. A psychiatrist advised that there

needed to be an assessment of her capacity. The hospital failed to carry this out and safeguards under the Mental Capacity Act 2005 had not been followed. The patient was ultimately transferred to a nursing home. The court awarded damages of £130 a day—almost £15,000 in total.¹⁸

15.4.2 A complete restriction of the claimant's freedom of movement ...

As there must be a *complete* restriction of the claimant's freedom of movement the conditions for the tort are not satisfied if the claimant is able to move in another direction (*Bird v Jones* [1845]; *Hicks v Young* [2015]).

p. 417

***Bird v Jones* (1845) 7 QB 742 (QBD)**

The defendant's employer had, without permission, installed seating to view a regatta on the River Thames across the public footway on Hammersmith Bridge in London. Although this prevented the claimant using the footway, the defendants were not liable for false imprisonment as his freedom of movement was not completely restrained; he was able to turn back the way he had come: 'imprisonment is ... a total restraint of the liberty of the person ... and not a partial obstruction of his will, whatever inconvenience it may bring on him' (at 742).

However, if the claimant's freedom of movement is completely restricted, it does not matter how long this restriction lasts. This means that acts which are most immediately recognisable as batteries may also amount to false imprisonment—so, for example, if A rapes B, B will have a claim in battery, false imprisonment and (possibly) assault. In *Walker v The Commissioner of the Police of the Metropolis* [2014], the Court of Appeal held that the claimant had been 'technically' falsely imprisoned in a narrow doorway by a police officer for a few seconds immediately prior to his lawful arrest (the police were attending a domestic dispute during which 'all hell broke loose' and there was a violent scuffle between the police officer and claimant):

It is not acceptable for an ordinary citizen to interfere with a person's liberty by confining him or her in a doorway. Although the confinement was for only a few seconds, the principle in question is framed in terms of 'for however short a time' (*Bird v Jones*, *Halsbury's Laws*). It is understandable that where liberty is in question ... there is no room for complaisance. (Rix LJ at [30])

However, it was clear that the court was uncomfortable with the decision. Tomlinson LJ continued:

Mr Walker's [the claimant] conduct attracts no sympathy [the trial judge had rejected his version of events in which he claimed the police officers had assaulted him as a 'tissue of lies'] but that is of course often the way when a fundamental constitutional principle is at stake. The detention was indeed trivial, but that can and should be reflected in the measure of damages and does not render lawful that which was unlawful. The judge's assessment of £5.00 as the appropriate figure was I think generous to Mr Walker, but there is no appeal against that assessment. (at [46])¹⁹

A restriction on the claimant's freedom of movement will not be considered 'complete' if there is a reasonable means of escape, so long as the claimant is reasonably aware of this. It also seems to be the case that where the defendant imposes reasonable conditions on the manner in which the visitor leaves his premises, these will be considered to amount to a reasonable means of escape and the restriction of the claimant's freedom will not be considered 'complete'. In *Robinson v Balmain New Ferry Co Ltd* [1910], the claimant had paid a penny to enter a wharf in order to catch a ferry but then changed his mind. He tried to leave the way he came, and claimed he was falsely imprisoned when he refused to pay the defendants a further penny to leave the wharf. His claim failed. It was reasonable for the defendants to have the payment barriers on one side of the wharf, and, in any case, the claimant had known about the charge to leave when he entered the wharf.²⁰

Pause for reflection

Of course much turns here on what is considered 'reasonable'. Consider the following examples: a man has been deliberately locked in a room on the first floor of a building. The window is unlocked and there is a rope near it long enough for him to climb down safely—is this a reasonable means of escape to defeat a claim in the tort of false imprisonment? Would your answer change if there was no rope?

Check our **pointers** <<https://iws.oup.support.com/ebook/access/content/horsey9e-student-resources/horsey9e-chapter-15-pointers-to-pause-for-reflection-and-counterpoint-boxes?options=showName>> on how to answer the questions posed in this 'pause for reflection'.

This was taken further in *Herd v Weardale Steel, Coke and Coal Co Ltd* [1915]. A miner had descended into the pit at 9.30 am and was due to remain until the end of his shift at 4 pm. At 11 am, he refused to do certain work on the basis that it was dangerous, and demanded to be taken to the surface. His employer initially refused. He was brought to the surface at 1.30 pm, although the lift had been available to carry men to the surface from 1.10 pm—which meant that he had been detained in the mine against his will for 20 minutes. The House of Lords held that the employer was not liable for false imprisonment. The miner had voluntarily entered the mine under a contract of employment and so was deemed to have (impliedly) consented that he would not be brought to the surface until the end of the shift:

If a man gets into an express train and the doors are locked pending its arrival at its destination, he is not entitled, merely because the train has been stopped by signal, to call for the doors to be opened to let him out. He has entered the train on the terms that he is to be conveyed to a certain station without the opportunity of getting out before that, and he must abide by the terms on which he has entered the train. So when a man goes down a mine, from which access to the surface does not exist in the absence of special facilities given on the part of the owner of the mine, he is only entitled to the use of these facilities (subject possibly to the exceptional circumstances to which I have alluded) on the terms on which he has entered. (Viscount Haldane LC at 71)

Counterpoint

Paula Giliker and Silas Beckwith suggest that it is difficult to see *Herd* as anything other than a harsh ruling in favour of employers' rights over employees.²¹ It is, they argue, scarcely legitimate to suggest that imprisonment is a reasonable response to the employee's breach of contract. There is, however, another way of viewing the court's decision: as a case of omission. On this view, there could be no liability because the restriction on the claimant's movement was the result of an omission. The employers had not done anything to positively restrain the claimant; they had simply failed to provide him with a route out. As such, there could be no action for false imprisonment. Trespass is concerned with immediate and direct actions, not omissions—the employers had simply failed to do something they were not obliged to do in the first place.

p. 419 ↩ The view that false imprisonment cannot be committed by an omission was affirmed by the Court of Appeal in *Iqbal*.

Iqbal v Prison Officers Association [2009] EWCA Civ 1312 (CA)

The Prison Officers Association (POA) called an unlawful strike which meant that very few prison officers turned up for work. In light of this, the prison governor decided that prisoners should remain in their cells for the entire day. The claimant, a prisoner who was normally allowed out of his cell for six hours a day for work and recreation, brought a claim against the POA for false imprisonment for the period that he would usually be allowed out of his cell, there being no claim against the prison governor (at [21]).²²

The Court of Appeal rejected his claim. The majority saw the central question as whether the prison officers could be held liable for an omission: their failure to release the claimant from his cell (both sides agreed that if the prison officers were liable then so too was the POA). They held that an omission could ground liability only if the defendants were under a positive duty to act *in relation to*

the claimant. Since, in their view, there was no such duty—the prison officers’ duty to release the claimant from his cell was a contractual duty owed to the prison governor and not the claimant—there could be no claim.

At least as a general principle, defendants are not to be held liable in tort for the results of their inaction, in the absence of a specific duty to act, a duty which would normally arise out of the particular relationship between the claimant and the defendant. Such a hard and fast distinction between action and inaction may seem arbitrary to some people, but it is not unprincipled, and, while it may lead to apparent injustice in particular cases, it does help to ensure a degree of clarity and certainty in the law. (Lord Neuberger MR at [21])

Sullivan LJ dissented in *Iqbal* on the ground that the POA’s action in calling the strike could not be sensibly considered a ‘mere omission’. It was a positive act (at [94]). And, as such, the claimant’s right not to be further restrained by the prison officers’ unauthorised action was infringed.

Pause for reflection

The extent to which, to use Lord Neuberger MR’s phrase, the ‘apparent injustice’ in *Iqbal* (and *Herd*) is outweighed by the need to ensure clarity and certainty in the law will depend on one’s views of the different interests of the parties. As Sullivan LJ notes, the prison governor’s response to the strike was ‘entirely predictable’ (at [102]). In any industrial dispute resulting in strike action, third parties—here the prisoners—will often bear the brunt of the disruption. In the context of a prison, this is likely to be felt through the loss of the measure of liberty afforded to the prisoners by the governor as part of the prison regime. However, he continued:

in so far as there is a conflict between the prisoners’ right not to be deprived of that liberty by persons, including prison officers, acting otherwise than in accordance with the

- ↪ prison governor’s authority, and the right of prison officers (absent any statutory prohibition) to strike, the former right must take precedence over the latter. While the right to strike is important, the right not to be falsely imprisoned is of fundamental importance. (at [103])

Do you agree?

Though it is necessary to show a complete restriction of the claimant’s freedom of movement, the claimant need not be aware of the restriction. Nor does the claimant need to have suffered any additional harm (beyond the restriction of their movements) from his false imprisonment:

it appears to me that a person could be imprisoned without his knowing it. I think a person can be imprisoned while he is asleep, while he is in a state of drunkenness, while he is unconscious, and while he is a lunatic ... Of course the damages might be diminished and would be affected by the question whether he was conscious of it or not. (Atkin LJ, *Meering v Grahame-White Aviation* [1920] at 53–4)

This was confirmed *obiter* by the House of Lords in *Murray v Ministry of Defence* [1988] (though in that case the claimant knew her freedom of movement was restricted): ‘the law attaches supreme importance to the liberty of the individual and if he suffers a wrongful interference with that liberty it should remain actionable even without proof of special damage’ (at 529). However, a person who is unaware of their imprisonment is likely to receive only nominal damages (see Smith LJ, *Iqbal* at [83]).²³

But what if the claimant is not yet imprisoned, but the defendant has decided that if they attempt to leave they will be imprisoned? In *R v Bournemouth Mental Health Trust (ex p L)* [1998], the *potential* deprivation of a claimant’s liberty was not held to be sufficient to ground a claim. In this case, a mentally ill patient was voluntarily held in an unlocked hospital ward—the staff at the hospital had agreed that should he try to leave he would be detained compulsorily under the Mental Health Act 1983. This is indeed what happened. A bare majority of the House of Lords overruled a unanimous Court of Appeal and dismissed the patient’s claim for false imprisonment in relation to the period prior to his compulsory detention. There was, they concluded, no imprisonment until the claimant was in fact detained under the Mental Health Act; an agreement to imprison the claimant was not the same as actually imprisoning him.

This rationalisation is, to say the least, somewhat difficult to grasp. The decision is certainly at odds with that in *Meering*. In both cases, the imprisonment consisted in the certainty that total restraint would have been enforced had either of the claimants tried to leave, even though neither had the knowledge that this would happen. As Lord Steyn noted in dissent in *Bournemouth*, the idea that the claimant could go free seems something of a ‘fairy tale’ (at 475), nevertheless he, and Lord Nolan who also dissented, both agreed with the majority that the defendant’s actions were justified by the necessity principle. Given the unanimous recognition of a violation and lack of adequate protection of the claimant’s Article 5 right (right to liberty and security) by the European Court of Human Rights (ECtHR) in *HL v UK* [2004] at [91] and that the circumstances in which a mentally ill patient can be detained have been clarified by the Mental Capacity Act 2005, it is unlikely that the majority’s decision in *Bournemouth* would be followed, in this context, in future (*P v Cheshire West and Chester Council*; *P and Q v Surrey County Council* [2014]). Indeed, as Lady Hale notes in *Jalloh*: ‘So far as is known, *Bournemouth* is the only example of a deprivation of liberty which did not amount to imprisonment at common law: generally speaking, one may well be imprisoned without being deprived of one’s liberty, but the other way round is harder to envisage’ (at [23]).

15.4.3 ... without legal authorisation

The essence of false imprisonment is the restriction of an individual’s freedom of movement without lawful justification or excuse. What amounts to a lawful justification or excuse is explored further in **section 15.5**. However, unlike the torts of battery and assault the tort of false imprisonment has a strong constitutional

element, which is worth exploring separately. In particular, where the defendant is a public authority (under the Human Rights Act (HRA) 1998), a claim for false imprisonment may coexist with one in respect of Article 5 of the European Convention on Human Rights (ECHR).

An example of this is the case of *Austin and other v Commissioner of Police of the Metropolis* [2009]. This case was brought in response to a police cordon on Oxford Street, London on 1 May 2001, which restricted the movement of some 3,000 people. The police had imposed the cordon after a large number of demonstrators—so-called ‘May Day’ protesters, some of whom were violent, had converged at Oxford Circus. The claimant was caught within the cordon and was prevented from leaving for several hours. She brought claims for false imprisonment and a breach of her right to liberty under Article 5 ECHR. The House of Lords held that there had been no infringement of the claimant’s Article 5 right. The police’s actions in seeking to ensure crowd control had been resorted to in good faith, were proportionate and were not enforced any longer than was reasonably necessary (at [37]).²⁴ Austin subsequently took her case to the ECtHR. Despite heavy criticism of the House of Lords’ decision in *Austin* by commentators and academics, the majority of the Grand Chamber of the ECtHR agreed that:

in the circumstances the imposition of an absolute cordon was the least intrusive and most effective means to be applied ... [but continued] that measures of crowd control should not be used by the national authorities directly or indirectly to stifle or discourage protest, given the fundamental importance of freedom of expression and assembly in all democratic societies. Had it not remained necessary for the police to impose and maintain the cordon in order to prevent serious injury or damage, the ‘type’ of the measure would have been different, and its coercive and restrictive nature might have been sufficient to bring it within Article 5. (*Austin and other v UK* [2012] at [66], [68])

p. 422 ↩ In most cases of false imprisonment, the claimant would otherwise be free to go wherever they please. But what about a person who is lawfully imprisoned—can they be falsely imprisoned in relation to acts subsequent to their lawful imprisonment? It is clear that if a prisoner is ‘imprisoned’ by another prisoner within the confines of the prison (or by a prison officer acting in bad faith), they will be able to bring an action for false imprisonment (*Ex p Hague* at 164), but what about where, for example, a prison governor makes a mistake or breaches the Prison Rules? In *R v Deputy Governor of Parkhurst Prison, ex p Hague* [1992] the House of Lords held that the claimant, a category A prisoner, was unable to establish a claim for false imprisonment against the prison governor in relation to his continued segregation following a prison transfer (in breach of the Prison Rules) as to do so would be to confuse the fact of confinement (the essence of a claim of false imprisonment) with the conditions of confinement (which fall outside the remit of the tort). This is surprising. One might expect that a breach of the Prison Rules would negate the prison governor’s statutory authority, thereby rendering lawful imprisonment *unlawful*. It is likely that the court was mindful of a desire to limit claims from disgruntled prisoners for technical breaches of the Rules.²⁵ A similar issue was considered by the Supreme Court in *R (on the application of Lumba) v Secretary of State for the Home Department* [2011].

***R (on the application of Lumba) v Secretary of State for the Home Department* [2011] UKSC 12 (SC)**

The claimant was a foreign national prisoner (FNP) serving a four-year prison sentence in the UK. In April 2006, the Home Secretary notified him that on the conclusion of his sentence, he would be deported, and that he would be detained pending deportation. As a result, the claimant, who was due to be released from prison in June 2006, remained in custody until he left the UK voluntarily in February 2011. The claimant brought a claim for false imprisonment for the period of detention following the completion of his prison sentence on the basis that the Home Secretary had detained him without lawful authority to do so. During the relevant period, despite a published policy stating that there was a presumption in favour of a FNP's release, pending a final decision relating to their deportation, in fact decisions had been made on the basis of an *unpublished* policy which operated on the opposite presumption, that is in favour of detention. The key issues for the court to determine were (a) whether the unpublished policy was unlawful; (b) if so, whether the detention on the basis of this policy amounted to false imprisonment where a FNP would have been lawfully detained in any event (as was the case here); and (c) if it was unlawful, what was the appropriate measure and award of damages.

The Supreme Court unanimously held that it was unlawful for the Secretary of State to maintain an unpublished policy which was inconsistent with the published policy and which applied a near blanket on the release of a FNP prior to deportation. Secondly, the court held that though a breach of a public law duty was capable of rendering the detention unlawful, not all forms of public law unlawfulness will ground a claim. Nevertheless, in this case, the majority (6:3) found ↵ the Home Secretary liable in the tort of false imprisonment on the basis that the statutory power used to detain the claimant was exercised in breach of her public law duties:

all that the claimant has to do is to prove that he was detained. The Secretary of State must prove that the detention was justified in law. She cannot do this by showing that, although the decision to detain was tainted by public law error ... a decision to detain free from error could and would have been made. (Lord Dyson at [88])

However, the fact that the claimant would have been detained whichever policy was applied was, the majority held, relevant when determining the issue of damages. Here the Justices were split. While Lords Dyson, Kerr and Collins's view was that, since the claimant had suffered no loss, only nominal damages of £1 should be awarded, the other Justices, in favour of an award, thought that it should be either £1,000 or £500 in order to underline the serious and 'deplorable' abuse of power (Lord Hope at [176]) and 'to recognise that the claimant's fundamental constitutional rights have been breached by the state and to encourage all concerned to avoid anything like it happening again' (Lady Hale at [218]). On the basis that the three dissenting judges (who would not have awarded anything) would go for the lowest award, this left the award of £1 in the majority (6:3).²⁶

p. 423

Things are slightly more complicated in relation to cases where a police officer ‘detains’ a suspect (without arresting them) on the basis of a ‘reasonable suspicion’, which might justify the detention. In such cases, the burden of proof is on the claimant to show that the defendant’s exercise of discretion was unreasonable (*Chief Constable of Thames Valley Police v Earl Gideon Foster Hepburn* [2002]; *Brooks v Commissioner of Police for the Metropolis* [2005]). In *Parker v Chief Constable of Essex Police* [2018], Michael Parker, better known as Michael Barrymore, a TV personality, brought a claim for false imprisonment following his unlawful arrest in relation to the death of Mr Lubbock at his house in 2001. He sought £2.4 million, assessed on the basis that he was re-establishing his career following the publicity which flowed from Mr Lubbock’s death but that, after his arrest, this became impossible. Leveson P held that although the actual arrest was unlawful (on the basis that, in the events which obtained, the arresting officer did not personally have reasonable grounds for the necessary suspicion to justify arrest as required by s 24(2) of the Police and Criminal Evidence Act 1984 (PACE)), ‘there were reasonable grounds both to suspect Mr Parker of committing an offence and that it was necessary to arrest him. ... [And] that had things been done as they should have been done (to quote Lady Hale in *Kambadzi*), a lawful arrest would have been effected’ (at [132]). As a result, Parker was only entitled to nominal damages, not the £2.4 million he was asking for.

Test your understanding by trying this section’s self-test questions <https://iws.oup.support.com/embed/access/content/horse9e-student-resources/horse9e-self-test-questions-15-4>.

p. 424 15.5 Defences: Lawful justification or excuse

A common element of each of the trespass torts is that the defendant must not have a lawful justification or excuse for their actions. As seen in the earlier discussion of statutory authority,²⁷ this usually operates as a defence to a claim, with the onus being on the defendant to establish that they can justify or excuse their actions. In this section, we consider three further defences that typically arise in this context—consent, necessity and self-defence.²⁸

15.5.1 Consent

The tort of battery potentially covers all forms of contact, subject to the requirement that the contact exceeds that which is generally acceptable in everyday life. However, the scope of battery (as well as the torts of assault and false imprisonment) is also limited through the mechanism (or defence) of consent. There is no battery when the claimant consents to the direct and immediate application of force by the defendant. If, for example, Riley consents to being kissed by Isla, they cannot later sue her for a battery—their consent provides Isla with a lawful justification or excuse for her action. Similarly, there will be no false imprisonment or assault if you consent to being tied up and threatened, say as part of a role-play or acting class.²⁹ Nor, it seems, in some cases, where you are so intoxicated you are unable to make an informed choice, as in the colourful case of *Pile v Chief Constable of Merseyside Police* [2020]. The claimant had been arrested for being drunk and disorderly and at some point during the evening she, in the words of Turner J:

had emptied the contents of her stomach all over herself and was too insensible with drink to have much idea of either where she was or what she was doing there. Rather than leave the vulnerable claimant to marinade overnight in her own bodily fluids, four female police officers removed her outer clothing and provided her with a clean dry outfit to wear. The claimant was so drunk that she later had no recollection of these events. (at [1])

The claimant suggested that this amounted to an actionable trespass to the person (as well as a breach of her Article 8 rights (right to private and family life)). This was rejected by the trial judge. Dismissing the claimant's appeal, Turner J held:

Where someone is so intoxicated that she is unable to make an informed choice then circumstances will arise in which a police officer can readily assume that consent to the removal of clothing can be implied. Normally, someone in custody who has vomited all over themselves, but lacks the ability to articulate their preference, may be safely taken to have given implied consent to the removal of their outer clothing and its replacement by clean clothing so long as all reasonable considerations of safety and the preservation of dignity have been taken into account. (at [37])

p. 425

Pause for reflection

Turner J continued:

I note, although it forms no part of my reasoning, that some members of the public may well have found it to have been a grotesque result if a woman who: has rendered herself insensible through drink; abused an innocent taxi driver; behaved aggressively to police officers trying to do their job and vomited all over herself should then be found to be entitled to compensation because those same officers, as an act of decency, had then changed her into clean and dry clothing at a time when she was too drunk to know or care. (at [38])

Do you agree? Should a claimant's behaviour really make a difference as to whether there is an actionable tort? Or if they are able to recover damages?

The burden of proving consent rests on the claimant.³⁰ It is clear that the consent must be genuine and sincerely given and that is not induced by fraud or misrepresentation (*Appleton v Garrett* [1995]). In *R v Williams* [1923], for example, a singing teacher was found guilty of raping a naïve claimant who had 'consented' to his actions on the basis of his false assertion that his conduct would improve her singing voice. Her consent was invalid on the basis that she had not really understood what was happening. Issues relating to consent often arise in the context of medical treatment. A doctor does not commit a battery when operating on or treating a patient if the patient has given valid consent to the treatment. Of course, this

simply prompts a second question: when is a patient's consent valid? An answer to this is found in *Chatterton v Gerson* [1981], in which the court ruled that a patient's consent to an operation was valid, despite the fact that she had not been fully informed of the risks, because she broadly understood the nature of the operation:

[O]nce the patient was informed in broad terms of the nature of the procedure which is intended, and gives her consent, that consent is real, and the cause of the action on which to base a claim for failure to go into risks and implications is negligence, not trespass. (at 443)³¹

But what about where a claimant refuses to give consent? If an individual is able to consent to what would otherwise be a battery, surely it follows that there is a corresponding ability to refuse consent to such actions? Consider again the example of a doctor who delivers a healthy child after performing a caesarean section on the mother without her consent. Does—or should—she have an action against the doctor in battery? The law is clear that an individual has an absolute right to the inviolability of their body:

p. 426

[A]n adult patient who ... suffers from no mental incapacity has an absolute right to choose whether to consent to medical treatment, to refuse it, or to choose one rather than another of the treatments being offered. This right of choice is not limited to decisions which others might regard as sensible. (Lord Donaldson MR, *Re T (Adult: Refusal of Treatment)* [1993] at 102)

A competent adult may therefore withhold their consent to any treatment (including the provision of food if provided by an intravenous tube or similar) even if said treatment is in their best interests, is necessary to save their life or, somewhat more controversially, the life of their unborn child (*Re MB (Caesarean Section)* [1997] at 533). This common law position—and the test of capacity more broadly—has been enshrined in statute (for those over 16) in the Mental Capacity Act 2005.³²

Mental Capacity Act 2005, s 1

- (2) A person must be assumed to have capacity unless it is established that he lacks capacity.
- (3) A person is not to be treated as unable to make a decision unless all practicable steps to help him to do so have been taken without success.
- (4) A person is not to be treated as unable to make a decision merely because he makes an unwise decision.
- (5) An act done, or decision made, under this Act for or on behalf of a person who lacks capacity must be done, or made, in his best interests.
- (6) Before the act is done, or the decision is made, regard must be had to whether the purpose for which it is needed can be as effectively achieved in a way that is less restrictive of the person's rights and freedom of action.

A doctor can only treat a patient in the absence of consent where a patient is unable to consent, that is, they *lack the capacity* to make such a decision themselves. To determine when a patient will lack capacity, it is useful here to adopt Shaun Pattinson's explanation of sections 2 and 3 of the 2005 Act as setting out a two-stage test.³³ A patient will only be considered to lack capacity if both stages of the test are met. First, the patient must be suffering from an 'impairment of, or a disturbance in the functioning of, the mind or brain', which means they are unable to make a decision for themselves (s 2). This may be temporary or long term, and caused by a number of factors including mental illness, brain injury or alcohol or drug abuse. Secondly, the patient will be considered unable to make a decision if the doctor reasonably believes, and takes reasonable steps to ensure (as required by s 5), that the patient is unable to meet any of the requirements of section 3(1): (a) to understand the information relevant to the decision; (b) to retain that information; (c) to use or weigh that information as part of the process of making the decision; or (d) to communicate his decision (whether by talking, using sign language or any other means). Where this test is satisfied, a doctor will not incur liability so long as they reasonably believe that the treatment or procedure is in the patient's 'best interests' (ss 4 and 5).

By contrast, it follows that where a patient is *able* to, for example, understand the information relevant to the decision, they have the capacity to make decisions about how they are to be treated and to give—and withhold—their consent and the doctor who operates or treats them will commit a battery.

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Counterpoint

The 2005 Act, like the common law, places considerable emphasis on the *doctor's* belief in the patient's capacity. Despite judicial rhetoric upholding an individual's right to self-determination, in cases where medical treatment is necessary to save the life of a woman and the foetus she is carrying, the case law suggests that the former's refusal to consent to medical intervention is less than likely to be considered valid.³⁴ *Re MB (Caesarean Section)* [1997] is a case in point. In this case, the claimant consented to a caesarean section but withheld consent in relation to an accompanying medical procedure, without which the caesarean section could not be performed. The court held that, in continuing with the procedures, the doctor had not committed a battery. The claimant's withholding of consent was held to be invalid, because she was found to be suffering from an impairment or disturbance of mental functioning (due to a fear of needles). Of course, the reality of the situation was that if the doctors had not intervened, the claimant *and the foetus* would have died. Nevertheless, an individual's right to make bad decisions is recognised in both common and statute law—how far do you think this should extend to decisions which would negatively impact on the life of the foetus?³⁵

15.5.2 Necessity

Where a claimant is unable to consent, a defendant might rely on the limited common law defence of necessity.³⁶ This solves a practical problem experienced by, for example, the emergency services and other medical professionals where an unconscious patient is incapable of consenting to necessary medical

treatment. On this basis, where a patient is unconscious but otherwise competent, and not known to object to the treatment, doctors may intervene in the best interests of the patient (*Re F; F v West Berkshire Health Authority* [1990]). The defence was also used in cases of permanent incapacity, for example where the patient is in a coma or mentally ill (e.g. *Airedale NHS Trust v Bland* [1993]).

Again, the common law in relation to this has been codified by the Mental Capacity Act 2005. A medical professional will not incur liability for treating a patient who is temporarily or permanently incapacitated, so long as before doing so they take reasonable steps to establish, and reasonably believe, that the patient lacks capacity and the treatment or procedure is in the patient's 'best interests' (s 5). Where the patient's lack of capacity is only temporary—due to shock or anger or as a result of an accident—the medical professional may treat the patient in accordance with their best interests, though they should also take into account when the person is likely to regain capacity in relation to the matter in question and, if possible, wait until the patient has regained capacity before continuing with further treatment (s 4).

p. 428 15.5.3 Self-defence

Finally, the defendant may be able to argue that they acted in self-defence. However, unlike the defendant in criminal proceedings who simply needs an honest belief (even if that belief is unreasonable) that they were about to be attacked, the tort defendant's belief must be not only honest but also *reasonable* (*Ashley v Chief Constable of West Sussex Police* [2008]). Moreover, it has long been established that the defendant's actions must be proportionate to the force (about to be) exerted against them. Thus, in *Cockcroft v Smith* [1705], the claimant's act of running with his finger extended towards the defendant's eyes did not justify the defendant's action of biting off part of the offending finger. Similarly, in *Lane v Holloway* [1968] the defendant's severe blow to the claimant's eye was out of proportion to the claimant's punch to his shoulder. *Lane* is also authority for the proposition that provocation is not a valid defence in relation to cases of trespass to the person.

However, *Lane* can be contrasted with the decision in *Cross v Kirkby* [2000]. Here a farmer, having been struck by a hunt saboteur with a baseball bat, wrestled the bat away from him and struck a single blow to the head which caused the claimant serious injuries. In upholding the defendant's raising of self-defence the Court of Appeal took into account the anguish of the moment in assessing whether this was an excessive or disproportionate response to the threat posed and held that the law did not require the defendant to measure the violence to be deployed with mathematical precision.

Pause for reflection

Views will differ on what response is or is not reasonable in 'self-defence'. Consider again the woman alone in a lift with an amorous male colleague. Suppose she takes matters into her own hands and knees the man in the groin—could he have a successful claim for battery against her? Or is her conduct excusable on the grounds of self-defence? Much will turn on whether her actions are considered a reasonable exercise of force. After all, to tell someone you like their dress is not to

threaten violence—in fact quite the opposite—nor are the words in themselves likely to be sufficient indication that they would be followed by any immediate unlawful force in, say, the form of a kiss or embrace—and, even if they were, surely the harm or injury of, for example, a stolen kiss isn't comparable with that of a knee in the groin? Is it?

Test your understanding by trying this section's self-test questions. <<https://iws.oup.support.com/embed/access/content/horsey9e-student-resources/horsey9e-self-test-questions-15-5>>.

15.6 Intentional infliction of physical harm or emotional distress

So far this chapter has considered the three torts which comprise trespass to the person: battery, assault and false imprisonment. All these involve direct actual or potential physical infringements of the claimant's person: touching them, putting them in fear of such touching or restricting their movement. However, it is possible to cause harm to another *indirectly*; that is, without physically interfering (or threatening to physically interfere) with them or their movements. In such cases, the trespass to the person torts offer no remedy. While the tort of negligence may offer some redress, where such harm is intentional a claimant may turn to the tort in *Wilkinson v Downton* and the Protection from Harassment Act 1997.

p. 429 15.6.1 The tort in *Wilkinson v Downton*

Over the years, the status of the 'well-known but seldom used principle in *Wilkinson v Downton*' (Arden LJ, *OPO v MLA* [2014] at [30]), providing a remedy for intentionally causing physical or psychological harm, has been in some doubt—most notably following Lord Hoffmann's suggestion in *Wainwright* that it should have 'no leading role in the modern law of tort' and should instead be allowed to 'disappear beneath the surface of the law of negligence' (at [40]–[41]).³⁷ However, since the decision in *Rhodes v OPO*, the tort in *Wilkinson v Downton* has had something of a revival.

In *Wilkinson v Downton* [1897] the defendant falsely told the claimant that her husband had been involved in an accident in which he had been seriously injured. The defendant later claimed that he had intended it as a practical joke. Unfortunately for him it was misjudged. The claimant took the news very badly, causing her to suffer severe physical and psychological reactions. Finding for the claimant, Wright J held that a cause of action arises when:

[t]he defendant ... wilfully do an act calculated to cause physical harm to the ... [claimant]—that is to say, infringe her right to personal safety, and thereby in fact caused physical harm to her. That proposition, without more appears to me to state a good cause of action, there being no justification alleged for the act. (at 57)³⁸

But what does it mean to say that the defendant's act was 'calculated to cause physical harm'?³⁹ This was addressed by the House of Lords in *Wainwright*.

***Wainwright v Home Office* [2003] 2 AC 406 (HL)**

The claimants, Mrs Wainwright and her son, Alan, were strip-searched by prison officers before visiting a family member in Leeds prison. The searches were a humiliating and distressing experience for both claimants. It was agreed that the search had been carried out 'sloppily' and not in accordance with the Prison Rules 1964. The claimants sought, in part, to rely on the tort in *Wilkinson v Downton* in order to ground a claim for the anxiety and distress they had suffered as a result of the prison officers' actions.⁴⁰

Unanimously rejecting their claims, the court held that liability under the Rules required, at the very least, the defendants to have acted without caring whether they caused harm (recklessly). This was not established on the facts of the case: the 'deviations from the procedure laid down for strip-searches were ... not intended to increase the humiliation necessarily involved but merely sloppiness' (Lord Hoffmann at [45]).

Lord Hoffmann continued that even if the necessary intention had been established in *Wainwright* not all intentionally caused distress should give rise to liability:

Even on the basis of a genuine intention to cause distress, I would wish ... to reserve my opinion on whether compensation should be recoverable. In institutions and workplaces all over the country, people constantly do and say things with the intention of causing distress and humiliation to others. This shows lack of consideration and appalling manners but I am not sure that the right way to deal with it is always by litigation ... The requirement of a course of conduct [in the Protection from Harassment Act 1997] shows that Parliament was conscious that it might not be in the public interest to allow the law to be set in motion for one boorish incident. It may be that any development of the common law should show similar caution. In my opinion, therefore, the claimants can build nothing on *Wilkinson v Downton*. It does not provide a remedy for distress which does not amount to recognised psychiatric injury and so far as there may be a tort of intention under which such damage is recoverable, the necessary intention was not established. (at [46]–[47])

Pause for reflection

Jonathan Morgan has argued that the decision in *Wainwright* reflects a judicial reluctance to recognise the significance of *distress* as an actionable harm:

it is characterised respectively as a flowing from a failure of etiquette, or from the good natured fun of traditional rites of initiation ... Such a dismissive attitude to mental distress is perhaps a little surprising, when the facts of *Wainwright* itself provide a glaring example of degrading behaviour, by a public authority at that. A rule that only 'serious' distress is actionable would better meet concerns of a flood of trivial claims, while allowing recovery in cases of truly humiliating conduct.⁴¹

What do you think? Think about the increasing prevalence of image-based sexual abuse, for example taking and/or publishing a private sexual image of someone without his or her consent. Should the fact that the victim's distress does not develop into a psychiatric illness restrict their ability to claim? What if the victim's primary emotion was anger rather than anxiety?⁴²

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↪ In any event, the view that *Wainwright* then prevents the application of the tort in *Wilkinson v Downton* in cases of intentionally caused anxiety or distress that falls short of a recognised psychiatric illness should now be read in light of Lord Neuberger's comments in *Rhodes v OPO* (at [119]).

The Supreme Court in *Rhodes v OPO* [2015] confirmed that there are three elements to the tort in *Wilkinson v Downton* (at [73]):

- (1) a conduct element—requiring words or conduct directed towards the claimant for which there is no justification or reasonable excuse;
- (2) a mental element—requiring the intention to cause at least severe mental or emotional distress; and
- (3) a consequence element—requiring physical harm or a recognised psychiatric illness.

***Rhodes v OPO (by his litigation friend BHM) and another* [2015] UKSC 32 (SC)**

The case involved the publication of a memoir by James Rhodes, a well-known performing artist, in which he detailed the sexual abuse he suffered while at school and his subsequent mental health issues. The case was brought on behalf of his son, OPO, who suffers from a combination of attention deficit hyperactivity disorder, Asperger's, Dysgraphia and Dyspraxia, and sought to prevent publication on the basis that in revealing such details of his father, its publication would be likely to cause him severe emotional distress. The Court of Appeal held—somewhat surprisingly—that the claimant had an arguable case under the tort in *Wilkinson v Downton* and granted an interim injunction until the case went to trial.

The Supreme Court allowed the defendant's appeal. Lady Hale and Lord Toulson gave the leading judgment. There are three elements in the *Wilkinson v Downton* tort: a conduct element, a mental element and a consequence element (at [73]). The first (conduct) requires that 'words or conduct directed to the claimant for which there is no justification or reasonable excuse' (at [74]). The burden of proof is on the claimant to demonstrate this and, in this case, the court held, this had not been met:

The book is for a wide audience and the question of justification has to be considered accordingly, not in relation to the claimant in isolation ... [the Court of Appeal's approach] excluded consideration of the wider question of justification based on the legitimate interest of the defendant telling his story to the world at large in the way he wishes to tell it, and the corresponding interest of the public in hearing his story. When those factors are taken into account ... there is every justification for the publication. (Lady Hale and Lord Toulson at [75]–[76])

Lady Hale and Lord Toulson went on to consider the mental element of a claim: intention to cause at least severe mental or emotional distress. It is clear, therefore, that intention is not limited to occasions where the defendant intended to cause illness, it being sufficient that they intended to cause severe distress which in fact results in recognisable illness (at [83]). But nor is recklessness enough.⁴³ To illustrate this point, Lady Hale and Lord Toulson used these examples:

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Suppose that a hostage taker demands money from the family of the hostage (H) for his safe release, or that a blackmailer threatens harm to a person unless the family of the victim (V) meets his demands. The wife or parent of H or V suffers severe distress causing them to develop a recognised psychiatric illness. We doubt that anyone would dispute that in those circumstances the hostage taker or blackmailer ought to be held liable for the consequences of his evil conduct. There would be no difficulty in inferring as a matter of fact that he intended to cause severe distress to the claimant; it was the means of trying to achieve his demand. But the wrongdoer may not have had the intention to cause psychiatric illness, and he may well have given no thought to its likelihood.

Compare that scenario with an example at the other end of the spectrum. The defendant has a dispute with his neighbour. Tempers become flared and he makes a deliberately insulting remark. He intends it to be upsetting, but he does not anticipate or intend that the neighbour will suffer severe emotional distress. Unfortunately the episode and in particular the insult have that effect, and the distress leads to a recognised form of psychiatric illness. It would be disproportionate to hold the defendant liable when he never intended to cause the neighbour to be seriously upset.

... To hold that the necessary mental element is intention to cause physical harm or severe mental or emotional distress strikes a just balance. It would lead to liability in the [first] example ... but not in the [second] ... It means that a person who actually intends to cause another to suffer severe mental or emotional distress (which should not be understated) bears the risk of legal liability if the deliberately inflicted severe distress causes the other to suffer a recognised psychiatric illness. (at [85]–[87])

In any event, on the facts there was no suggestion that the appellant actually intended to cause psychiatric harm, severe mental or emotional distress to the claimant (at [89]). The third element (consequence) did not arise in this case. It was common ground that the necessary consequence for liability was physical harm or a recognised psychiatric illness. However, the court left open the question as to whether intentionally causing severe distress might be actionable. Lord Neuberger, in a short concurrence, suggested that it should be:

As I see it, therefore, there is plainly a powerful case for saying that, in relation to the instant tort, liability for distressing statements, where intent to cause distress is an essential ingredient, it should be enough for the claimant to establish that he suffered

↪ significant distress as a result of the defendant's statement. It is not entirely easy to see why, if an intention to cause the claimant significant distress is an ingredient of the tort and it enough to establish the tort in principle, the claimant should have to establish that he suffered something more serious than significant distress before he can recover compensation. (at [119])

Pause for reflection

The Court of Appeal judgment in *Rhodes v OPO* (or *MLA v OPO* as the case was then known) was greeted with dismay and regret by many commentators.⁴⁴ At the heart of many of the objections was the view that, were it to stand, the judgment had potentially significant ramifications for freedom of expression and was 'likely to lead to a "chilling effect" on free speech'.⁴⁵ Jo Glanville, the director of English PEN, a worldwide writers' association (who were intervenors in the case at the Supreme Court), commented:

This sets a worrying precedent for injunctioning memoirs or any non-fiction that may expose or investigate the past, whether personal or political. It would allow anyone to cite the distress of a relative or friend as grounds for censorship.⁴⁶

The Supreme Court, in what has been described as a 'paean to freedom of expression',⁴⁷ accepted these arguments:

A person who has suffered in the way that the appellant has suffered, and has struggled to cope with the consequences of his suffering in the way that he has struggle, has the right to tell the world about it ... Freedom to report the truth is a basic right to which the law gives a very high level of protection. ... It is difficult to envisage any circumstances in which speech which is not deceptive, threatening or possibly abusive, could give rise to liability in tort for wilful infringement of another's right to personal safety. The right to report the truth is justification in itself. That is not to say that the right of disclosure is absolute, for a person may owe a duty to treat information as private or confidential. But there is no general law prohibiting the publication of facts which will cause distress to another, even if that is the person's intention. (Lady Hale and Lord Toulson at [76]–[77])

One area where *Rhodes* may end up playing an important role is as an avenue of redress for victim/survivors of sexual abuse and violence. This possibility was considered in *ABC v West Heath 2000 Ltd and Willock* [2015]. The claimant, a pupil at the defendant's school for children with emotional and behavioural difficulties, had been groomed over a number of years by ↵ Mr Whillock, the school's Vice Principal and co-author of the school's Child Protection Policy. The grooming had involved encouraging the claimant to send indecent images of herself to him and the exchange of text messages of a sexual content.⁴⁸ He had also sexually assaulted the claimant. The claimant sought damages both for the physical assault and under the tort in *Wilkinson v Downton* arguing that 'the emotional manipulation of the claimant and the encouragement of her to take and send indecent photographs of herself and the ensuing sexual banter by text amounted to the intentional infliction of harm as redefined in the case of *Rhodes*' (at [8]). The principal question at trial was whether the defendant had indeed physically assaulted the claimant. Having held that he had, Sir Robert

Nelson held that the claimant was entitled to damages for her psychiatric harm on this basis. However, he also concluded that the claimant could also succeed on the basis of the tort in *Wilkinson v Downton*, as clarified by *Rhodes*.

I should note, however, that I am entirely satisfied that a claim under *Wilkinson v. Downton* as explained in *Rhodes* is established. This tort of intentional infliction of harm in its reformulation has three elements (a) the conduct element (b) the mental element (c) the consequence element. (*Rhodes* para 73) I am satisfied that each is established. Mr Whillock acted unjustifiably towards the claimant by emotionally manipulating her and encouraging her to send indecent images of herself to him and engaging in sexual banter in the texts. His manipulation was successful in that she became infatuated with him and wanted to make him happy. She is still infatuated by him now. The mental element requires the claimant to establish that Mr Whillock intended to cause severe mental or emotional distress to her. There are however, as was said in *Rhodes* para 112 actions whose ‘consequences or potential consequences are so obvious the perpetrator cannot realistically say that those consequences were unintended’. It was obvious that the illicit relationship would in the end cause nothing but harm to the vulnerable Claimant some 39 years younger than her groomer and those consequences must have been entirely clear and obvious to Mr Whillock. The consequence element is also established. As I have found under the heading of causation she suffered from an adjustment disorder after the disclosure in January 2010 with an acute exacerbation of her mental health problems when the abuse became public. (at [89])

The claimant was awarded £51,370 in damages, £25,000 of which related to the *Rhodes* claim.

Counterpoint

The Supreme Court in *Rhodes* held that liability under the rule in *Wilkinson v Downton* required the defendant to have intended to cause the relevant psychiatric harm to the claimant. Importantly, however, Lord Neuberger had said that intention might be established where the ‘consequences or potential consequences [of the statement or actions] are so obvious the perpetrator cannot realistically say that those consequences were unintended’ (at [112]). It was on this basis that Sir Robert Nelson in *ABC* concluded that the mental element for liability under *Wilkinson v Downton* was made out:

It was obvious that the illicit relationship would in the end cause nothing but harm to the vulnerable claimant some 39 years younger than her groomer and those consequences must have been entirely clear and obvious to Mr Whillock. (at [89])

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↩ However, while, as in *ABC*, the court may find intention on the basis that psychiatric harm was an obvious consequence of the defendant's actions, Lord Neuberger in *Rhodes* (at [113]) made clear that recklessness is not enough. The difficulty will come in distinguishing foresight of obvious harm from 'mere' recklessness.

Pause for reflection

How significant is the decision in *ABC*? The case, reported as the first in which damages were awarded in a civil court for 'sexting', was widely welcomed as 'ground breaking'.⁴⁹ Lawyers for the claimant, speaking to the press, suggested that it:

sets a precedent that where sexual abuse takes place, even when it doesn't involve physical contact, if it involves exchanging sexually explicit images then the victim can recover compensation for that. The teacher involved got community service, which in terms of the criminal sanction means he got off very lightly given the impact on my client. So I hope these civil cases where there is a substantial award of damages will have an extra bite and deterrent for these people.⁵⁰

We hope this is the case.⁵¹ However, it remains likely that the key challenge for those bringing such claims will be in establishing that their abusers did indeed intend the harm these claimants have suffered.

In our video 'The torts that were ahead of their time', we argue that the trespass torts and rule in *Wilkinson v Downton* were ahead of their time. Not only do they provide vital and effective alternative avenues for justice for victim-survivors of sexual assault and violence, but they play an important role in filling and exposing ongoing gaps in the criminal law.

Video playback is not supported in this format.

Video 15: The torts that were ahead of their time

15.6.2 The Protection from Harassment Act 1997

The Protection from Harassment Act (PfHA) was a response to increasing public concern about harassment and, in particular, stalking.⁵² Its enactment attracted considerable media and celebrity attention. The Act has since been used by celebrities such as Cheryl Cole, Russell Brand and Harry Styles to try and prevent or restrict press intrusion. The Act introduces a civil remedy for harassment (s 3) as well as a criminal offence of harassment (s 2).⁵³ In line with its principal purpose to prevent and protect rather than compensate, the Act

p. 436 ↪ provides for the imposition of an injunction, alongside damages and criminal sanctions for non-compliance (s 3).⁵⁴

The key provision states that ‘a person must not pursue a course of conduct (a) which amounts to harassment of another, and (b) which he knows, or ought to know, amounts to harassment of the other’ (s 1(1)).⁵⁵ Unlike the tort in *Wilkinson v Downton*, there is no requirement that the claimant suffer from a recognised psychiatric illness. Nor does the harassing conduct need to be directly aimed at the claimant. In *Levi v Bates* [2015], the Court of Appeal confirmed that an individual may be harassed by the defendant even if their actions are aimed at someone else:

The tort ... of harassment does not require an intent to harass any one individual; section 1 of the Act is clear that the question whether conduct is harassing conduct is an objective question for the fact-finder. If therefore a defendant knows or ought to know that his conduct amounts to harassment, he should be liable to the person harassed, even if the conduct is aimed at another person ... It may not be often that a person who is not the target of the harassing conduct will, in fact, be harassed. But a wife, or other close family member, may well suffer a feeling of harassment if a defendant publishes her and her husband’s address with a view to encouraging members of the public to visit that address in an aggressive or hostile manner. (Longmore LJ at [55]–[56])

15.6.2.1 A ‘course of conduct’

The 1997 Act defines a ‘course of conduct’ as harassing conduct on ‘at least two occasions’ (s 7(3)).⁵⁶ The incidents must be similar in type and in context: ‘the fewer incidents there are and the further in time they are apart, the less likely it will be that they can properly be treated as constituting a course of conduct’ (Elias LJ, *James v DPP* [2009] at [11]). Whether the defendant’s actions amount to a ‘course of conduct’ will then depend on the facts of the case. It is not necessary that the two or more occasions amount individually to harassment. As Rix LJ noted in *Iqbal v Dean Manson Solicitors* [2011]:

Take the typical case of stalking, or of malicious phone calls. When a defendant, D, walks past a claimant C’s door, or calls C’s telephone but puts the phone down without speaking, the single act by itself is neutral, or may be. But if that act is repeated on a number of occasions, the course of conduct may well amount to harassment. That conclusion can only be arrived at by looking at the individual acts complained of as a whole ... So it is with a course of communications such ↪ as letters. A first letter, by itself, may appear innocent and may even cause no alarm, or at most a slight unease. However, in the light of subsequent letters, that first letter may be seen as part of a campaign of harassment. (at [45])

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Perhaps surprisingly, a single publication of a harassing statement or image online can amount to a 'course of conduct' where the defendant does so 'in the knowledge that such publications will inevitably come to [the claimant's] attention on more than one occasion and on each occasion cause them alarm and distress constitutes harassment under the PHA' (Tugendhat J, *Law Society v Kordowski* [2011] at [61]). Tugendhat J continued:

The publication is an ongoing one on a prominent website; accordingly the distress and alarm caused by the publication will also be continuous. It is reasonable to infer in every case that those posted would suffer such distress and alarm on at least two occasions. (at [64])

Pause for reflection

While Tugendhat J's understanding of a 'course of conduct' may allow victim/survivors of image-based sexual abuse to utilise the provisions of the 1997 Act in circumstances where a single act (e.g. uploading a single picture) has been done in the knowledge that it would be viewed by a large number of people,⁵⁷ what about alleged *perpetrators* of sexual violence and/or harassment, does this also provide them with a remedy?

The simple answer is yes. The PfHA, as well as other actions such as defamation,⁵⁸ apply to victims and perpetrators of (on- and offline) abuse alike. As Brett Wilson, a media law specialist, explains there are a number of reasons why someone who has been named in a tweet as an abuser might bring a claim for harassment:

- Truth is not a defence to a harassment claim.⁵⁹ The issue is whether the conduct is reasonable or not.⁶⁰ Standing outside someone's house with a megaphone every day of the week shouting 'John Smith sexually harasses women' is likely to be deemed unreasonable even if it is true that John Smith has sexually harassed women in the past. Whilst it would depend on the facts of the case, the same logic could be applied to an online campaign where these allegations are repeatedly tweeted or posted.
- It is not necessary to prove serious harm or any harm to reputation.⁶¹ Whilst there is often an overlap with defamation, the tort is not concerned with injury to reputation. Damages are awarded for distress and injury to feelings.⁶² An injunction can be imposed to prohibit repetition of the conduct.
- ↵ It is not even necessary to show that anyone read the statements.⁶³ The question is whether the conduct was harassing and whether the defendant knew or should have known this. Harassment may be established by unwanted communications to the claimant alone.
- The legal process is often more straightforward, quicker and cheaper (in relative terms) [than, for example, bringing a claim in defamation or privacy].⁶⁴

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15.6.2.2 'Knows, or ought to know amounts to harassment'

The defendant need not have foreseen that their conduct would harass or cause the claimant anxiety. Liability is based on actual or constructive knowledge that their conduct amounts to harassment, that is whether the defendant *ought* to have known that their conduct amounts to harassment. The test is whether 'a reasonable person in the possession of the same information would think the course of conduct amounted to harassment of the other' (s 1(2)).

The PfHA leaves the definition of harassment deliberately wide. It simply states that harassment includes 'alarming the person or causing the person distress' (though conduct can still amount to harassment even where no distress or alarm is caused) (s 7(2)). What is clear is that annoying or aggravating matters of everyday life will not amount to harassment: 'the Protection from Harassment Act 1997 is not designed to interfere with the ordinary give and take of everyday life' (*Mitton v Benefield* [2011] at [10]). The behaviour must be of a level that is 'oppressive and unacceptable':

Courts are well able to recognise the boundary between conduct which is unattractive, even unreasonable, and conduct which is oppressive and unacceptable. To cross the boundary from the regrettable to the unacceptable the gravity of the misconduct must be of an order which would sustain criminal liability under section 2. (Lord Nicholls, *Majrowski* [2007] at [30])

Over the years the PfHA has been used in response to the publication of victimising newspaper articles (*Thomas v News Group Newspapers Ltd*; *Trimingham v Associated Newspapers Ltd* [2012]), sending mass letters or emails and setting up websites (*Merlin Entertainments LPC, Chessington World of Adventures Operations v Cave* [2014]; *Ashford Borough Council v Wilson* [2021]), a Facebook page revealing the identity and whereabouts of a convicted sex offender (*CG v Facebook Ireland Ltd and Joseph McCloskey* [2015]),⁶⁵ multiple, unjustified bills and threats of legal action (*Ferguson v British Gas* [2009]), posting of personal information or purported information online (*GYH v Persons Unknown* [2017]), paparazzi photographers,⁶⁶ homophobic bullying in the workplace (*Majrowski*; *Veakins v Kier Islington Ltd* [2009]) and intimidating public demonstrations (*Daiichi UK Ltd v Stop Huntington Animal Cruelty* [2004]).

p. 439 15.6.2.3 Excluded activities

The PfHA excludes certain conduct from the remit of harassment. These are listed in section 1(3) and include activity for the purpose of detecting or preventing crime (s 1(3)(a)), that is pursued under any enactment or rule of law (s 1(3)(b)) and that which is 'in the particular circumstances ... reasonable' (s 1(3)(c)).

In *Hayes v Willoughby* [2013], the defendant, Willoughby, had embarked on a campaign against his former employer alleging fraud, embezzlement and tax evasion in relation to his management of his companies. A subsequent investigation found no basis in the allegations, however the defendant continued with his campaign. The majority of the Supreme Court held that the defendant had no section 1(3)(a) defence to his harassing behaviour. The test was neither wholly objective (as that would render the reasonableness defence

in section 1(3)(c) otiose), nor subjective (a mere belief that he is preventing a crime, however absurd, cannot justify the defendant persisting in a course of conduct which the law recognises as harassment). Rather the defendant's actions must pass an 'undemanding' 'test of rationality':

He must have thought rationally about the material suggesting the possibility of criminality and formed the view that the conduct said to constitute harassment was appropriate for the purpose of preventing or detecting it. If he has done these things, then he has the relevant purpose. The court will not test his conclusions by reference to the view which a hypothetical reasonable man in his position would have formed. (Lord Sumption at [15])

In contrast *Willoughby* was described by Lord Sumption as having a 'vendetta' against Hayes which 'was more than objectively unreasonable. It was irrational. His persistence was obsessive' (at [16]).⁶⁷

But what amounts to reasonable conduct? In *Sube v News Group Newspapers Ltd* [2020] Mr and Mrs Sube, a married couple with nine children, were the subject of a series of newspaper articles in the local and national press detailing their dissatisfaction with their social housing offered by Luton Borough Council and published under headlines including: 'Jobless dad whines about £15k-a-year council home—and turns down five bedroom house'. The comments on the online versions were largely critical of the couple and included racial abuse. They brought a rare claim for harassment against the publisher of the papers.⁶⁸ Rejecting their claim, Warby J held that:

- (2) The Court must test the ‘necessity’ of any interference with freedom of expression by using the well-known three-part test:

The test of ‘necessity in a democratic society’ requires the Court to determine whether the ‘interference’ corresponded to a ‘pressing social need’, whether it was proportionate to the legitimate aim pursued and whether the reasons given ... to justify it are relevant and sufficient. *Nilsen and Johnsen v Norway* (1999) 30 EHRR 878 [43].

...

- (5) nothing short of conscious or negligent abuse of media freedom will justify a finding of harassment:

... the test [of reasonableness] requires the publisher to consider whether a proposed series of articles, which is likely to cause distress to an individual, will constitute an abuse ↵ of the freedom of press which the pressing social needs of a democratic society require should be curbed. *Thomas v News Group* [50] (Lord Phillips MR).

- (6) It will be a rare or exceptional case in which these criteria are satisfied, in relation to media publication. ...

In general, press criticism, even if robust, does not constitute unreasonable conduct and does not fall within the natural meaning of harassment. ... *Thomas v News Group* (Lord Phillips MR). (at [68])

Pause for reflection

Joanne Conaghan argues that a key difficulty with the PfHA is that it ‘assumes a degree of consensus [as to what constitutes harassing behaviour] which may not exist’.⁶⁹ Despite the view of the Court of Appeal in *Thomas v News Group Newspapers Ltd* [2001] that ‘harassment is ... a word which has a meaning that is generally understood’ (at [30]), this may not always be the case. Opinions may differ on when, for example, an ex-lover’s attempts to win a partner back become threatening or a series of newspaper articles amount to harassment.

Moreover, she continues, the ‘adoption of the “reasonable harasser’s” perspective’ fails to directly engage with the effect of the harasser’s conduct on the *claimant* and ‘inevitably incorporates a gender dimension into the standard applied, certainly where the conduct in question has a sexual dimension’.⁷⁰ Do you agree? Think again about the infatuated student in the examples at the start of the chapter—at what point do you think their phone calls will constitute harassment?

Test your understanding by trying this section's self-test questions <https://iws.oup.support.com/embed/access/content/horsey9e-student-resources/horsey9e-self-test-questions-15-6>.

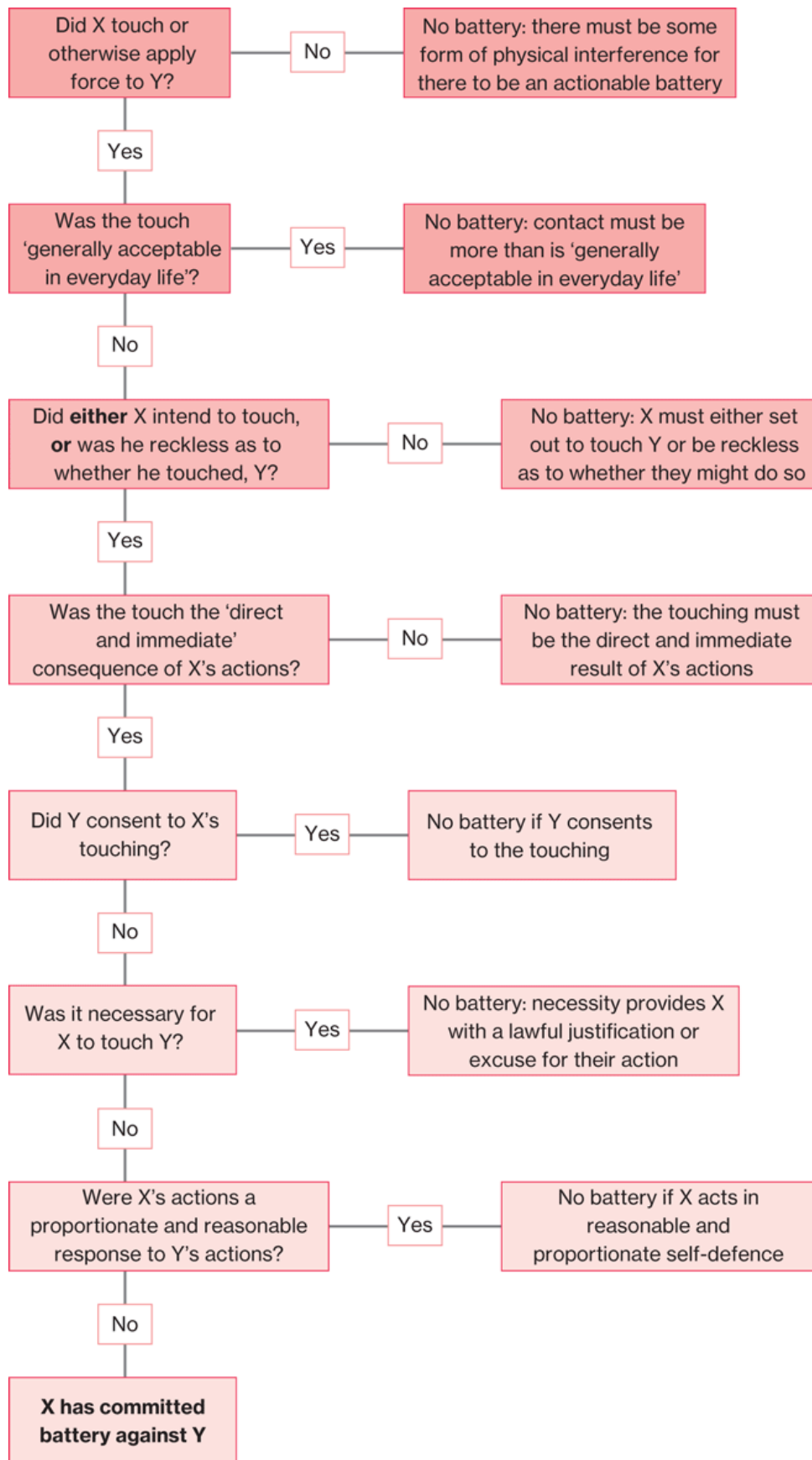
15.7 Conclusion

This chapter explores the torts which comprise trespass to the person—battery, assault and false imprisonment. These torts protect an individual against an infringement of their personal integrity through the infliction of unlawful force (battery), the fear of the infliction of said force (assault) and the unlawful restriction of their freedom of movement (false imprisonment). The three torts have the same characteristics: they must be committed intentionally; they must cause direct and immediate harm; and they are actionable without proof of loss. These characteristics distinguish the trespass to the person torts from the tort of negligence: while trespass compensates the claimant in relation to direct and intentional harm (e.g. being deliberately hit), negligence compensates the claimant for unintentional or indirect harm (i.e. accidental injury).

Decision Trees 15.1, 15.2 and 15.3 show the elements of a claim in each of the three trespass to the person torts.

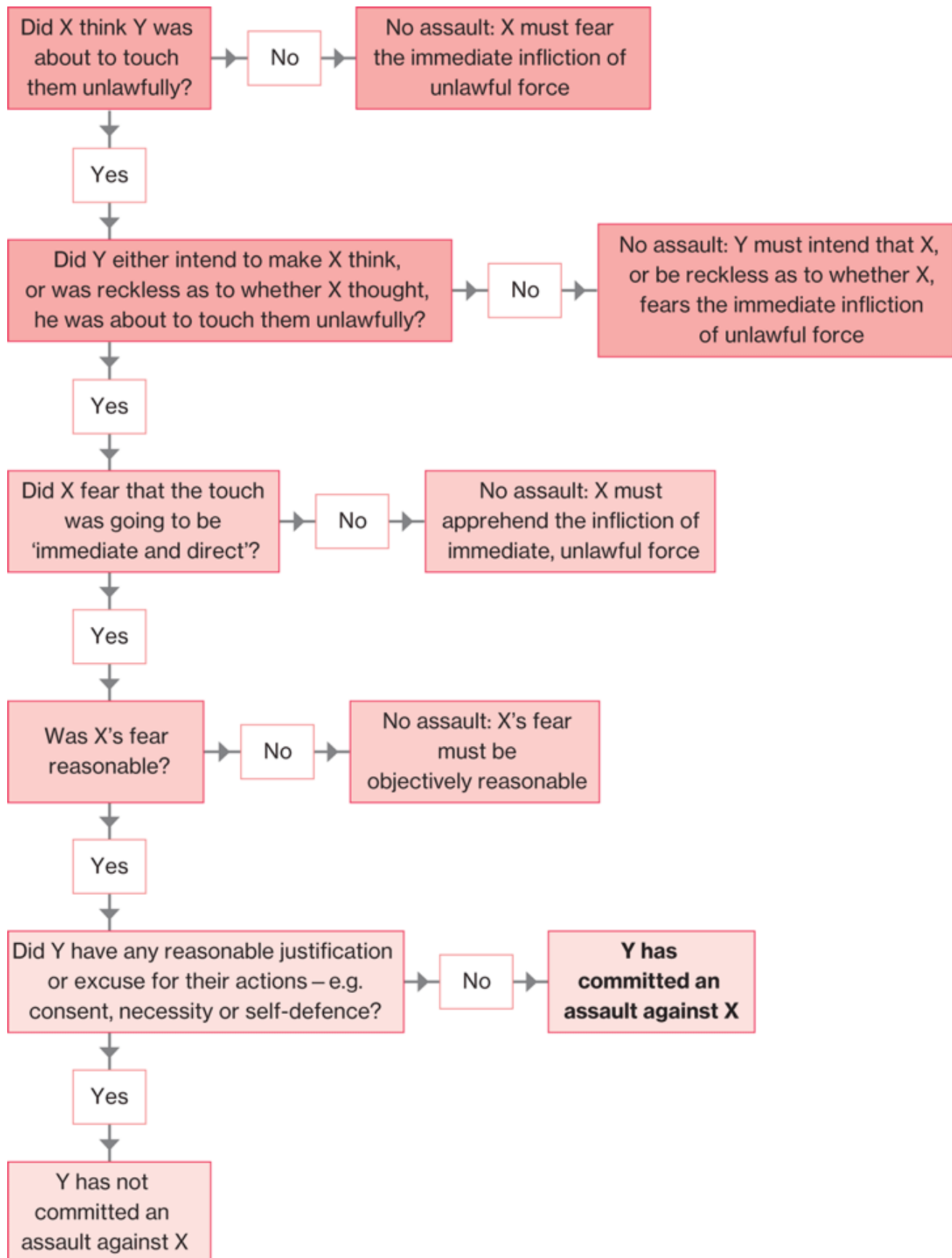
Explore the elements of each tort using the interactive versions of Decision Tree 15.1 <https://iws.oup.support.com/embed/access/content/horsey9e-student-resources/horsey9e-chapter-15-interactive-decision-tree-15-1>, Decision Tree 15.2 <https://iws.oup.support.com/embed/access/content/horsey9e-student-resources/horsey9e-chapter-15-interactive-decision-tree-15-2> and Decision Tree 15.3 <https://iws.oup.support.com/embed/access/content/horsey9e-student-resources/horsey9e-chapter-15-interactive-decision-tree-15-3>.

15. Intentional interferences with the person



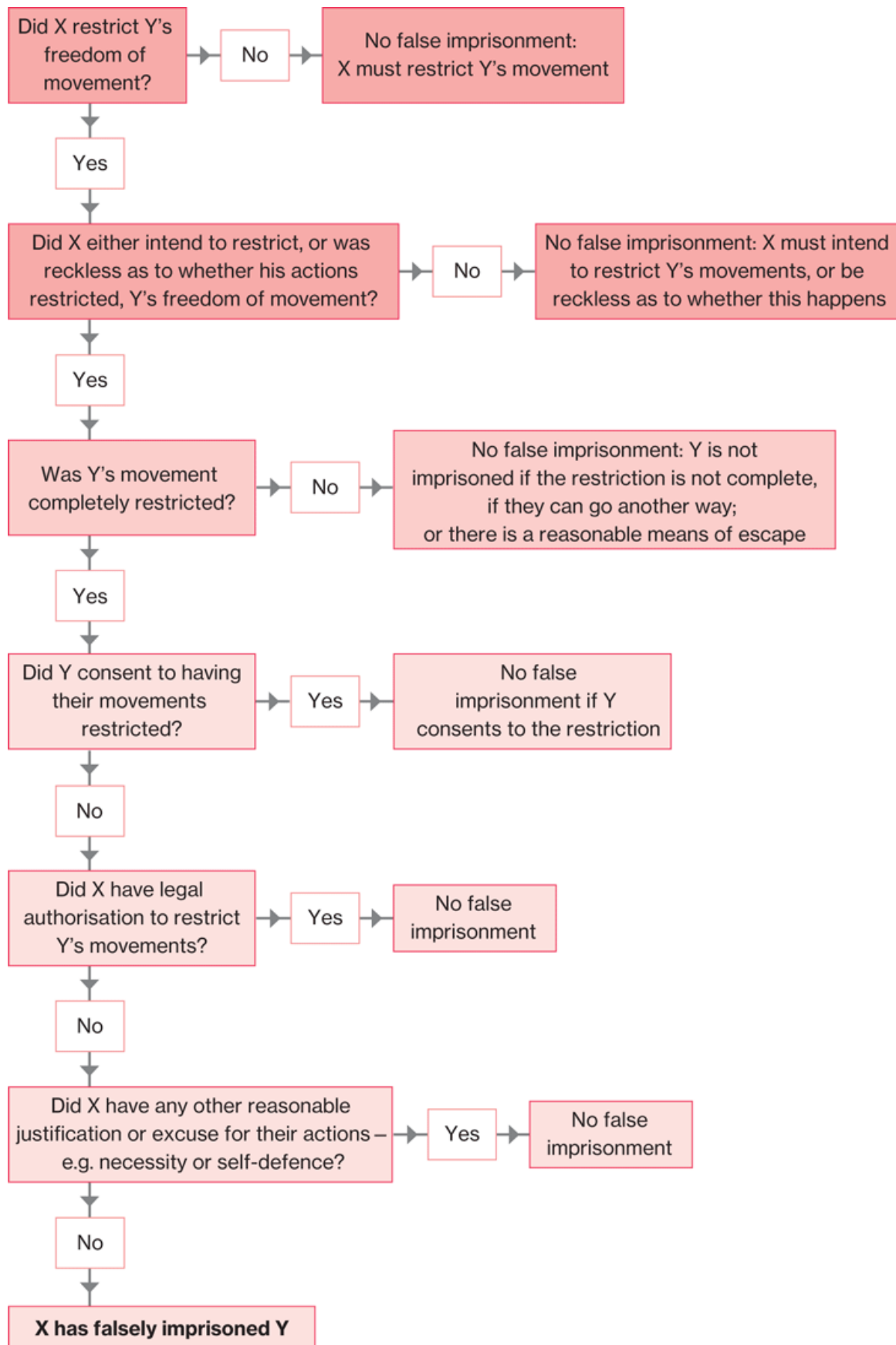
Decision Tree 15.1 Battery: the infliction of unlawful force on another

15. Intentional interferences with the person



Decision Tree 15.2 Assault: an act which causes another person to apprehend the infliction of immediate, unlawful force on their person

15. Intentional interferences with the person



Decision Tree 15.3 False imprisonment: the unlawful and total restriction of another's freedom of movement

The chapter also considered the tort in *Wilkinson v Downton*, which provides a remedy for intentional acts causing *indirect* physical and psychiatric harm, and the Protection from Harassment Act 1997 which imposes civil and criminal liability for harassment, where there has been an ‘oppressive and unacceptable’ course of conduct.

p. 442 End-of-chapter questions

After reading the chapter carefully, try answering the questions which follow.

- 1 Outline the trespass to the person torts; how do they differ from the tort of negligence?
- 2 ‘Tort law has, in recent years, come a long way toward removing the barriers which previously stood in the way of complainants seeking redress in the context of harassing conduct.’ Assess the accuracy of this statement.

If you would like to know what we think, check the **answer guidance** <https://iws.oup.support.com/ebook/access/content/horsey9e-student-resources/horsey9e-chapter-15-answers-to-end-of-chapter-questions?options=showName>.

Answering the problem question

Consider again the problem question at the start of this chapter. Now having read about the topic, **what would be your advice to the various parties?**

Here are some pointers to get you started:

- There are a few potential assaults here: Thomas’s threat to Henry, whispered advances to Maeve and (if he saw it coming) Henry’s tripping up of Thomas.
- Could Thomas’s missed calls to Maeve be considered harassing behaviour under the Protection from Harassment Act?
- Don’t forget defences—is Maeve’s battery of Thomas in self-defence?

If you need some more guidance:

- See the **annotated version of the problem with issues and cases to consider** <https://iws.oup.support.com/embed/access/content/horsey9e-student-resources/horsey9e-chapter-15-annotated-problem-question-interactive>.

→

Check your answer against the **suggested outline answer** <<https://iws.oup.support.com/embed/access/content/horsey9e-student-resources/horsey9e-chapter-15-answers-to-problem-question>>.

Further reading

Though some of the academic writing in this area predates the decision in **Wainwright** and **Rhodes v OPO**, it continues to offer an insightful and relevant critique of the law in this area.

Antonsdóttir, Hildur Fjóra 'Compensation as a Means to Justice? Sexual Violence Survivors' Views on the Tort Law Option in Iceland' (2020) 28 Feminist Legal Studies 277

Chamallas, Martha 'Will Tort Law Have its #MeToo Moment?' 4 September 2018, Ohio State Public Law Working Paper No 456

Conaghan, Joanne 'Enhancing Civil Remedies for (Sexual) Harassment: s 3 of the Protection from Harassment Act 1997' (1999) 7 Feminist Legal Studies 203

Godden, Nikki 'Tort Claims for Rape: More Trials, Fewer Tribulations?' in Janice Richardson and Erika Rackley (eds) *Feminist Perspectives on Tort Law* (Routledge 2012) 163–78

Horsey, Kirsty and Erika Rackley 'Tort Law' in Rosemary Auchmuty (ed) *Great Debates on Law and Gender* (Palgrave 2018) ch 2

p. 445 Hunt, Chris DL 'Wilkinson v Downton Revisited' [2015] Cambridge Law Journal 392 ↵

Liew, Ying Khai 'The Rule in *Wilkinson v Downton*: Conduct, Intention and Justifiability' (2015) 78 Modern Law Review 349

Lunney, Mark 'False Imprisonment, Fare Dodging and Federation—Mr Robertson's Evening Out' (2009) 31 Sydney Law Review 537

Morgan, Jonathan *Great Debates in Tort Law* (Hart 2022) ch 2

O'Connell, Aislinn 'Image-Based Sexual Abuse and Gender Conceptions of Harm in Tort' in Kirsty Horsey (ed) *Diverse Voices in Tort Law* (Bristol University Press 2024) 221–44

Patten, Keith 'Defining Harassment' (2010) 160 New Law Journal 331

Trindale, FA 'Intentional Torts: Some Thoughts on Assault and Battery' (1982) 2 Oxford Journal of Legal Studies 211

Additional suggestions for further reading can be found in this chapter's **web links** <<https://iws.oup.support.com/ebook/access/content/horsey9e-student-resources/horsey9e-chapter-15-web-links?options=showName>>.

Notes

- ¹ See further Matthew Dyson 'The Timing of Tortious and Criminal Actions for the Same Wrong' [2012] Cambridge Law Journal 86.
- ² On this case and point, see further Nicholas McBride 'Trespass to the Person: The Effect of Mistakes and Alternative Remedies on Liability' [2008] Cambridge Law Journal 416.
- ³ See further Kirsty Horsey and Erika Rackley 'Tort Law' in Rosemary Auchmuty (ed) *Great Debates on Law and Gender* (Palgrave 2018) 14–19; Nikki Godden 'Tort Claims for Rape: More Trials, Fewer Tribulations?' in Janice Richardson and Erika Rackley (eds) *Feminist Perspectives on Tort Law* (Routledge 2012) 163–78; Hildur Fjóra Antonsdóttir 'Compensation as a Means to Justice? Sexual Violence Survivors' Views on the Tort Law Option in Iceland' (2020) 28 Feminist Legal Studies 277 and, for a more recent example of this in practice, Tim Dale and Emma Glasbey, 'Rotherham grooming survivor awarded £425k after suing rapist' BBC News, 27 March 2023.
- ⁴ It may be that the reference to 'harm' here is misleading. The effect of the torts of trespass to the person being actionable per se is that the claimant need not show that they have suffered any loss for their claim to succeed. As such, the claimant need not have suffered any tangible (physical or psychiatric) harm. Rather, they simply need to show that they have been unlawfully touched (battery), apprehended an immediate unlawful touching (assault) or been physically restrained (false imprisonment).
- ⁵ The Act stated that personal injury actions for 'negligence, nuisance or breach of duty' must be brought within three years, while other tort actions were barred after six years.
- ⁶ It may be that disagreements as to whether a trespass can be committed negligently are somewhat academic. After all, if a claimant is unable to sue for negligently touching in trespass, so long as they have suffered some form of physical injury, a remedy will lie in the tort of negligence. And if they have not suffered such harm, then a claim in trespass would be largely useless since no more than nominal damages would be awarded.
- ⁷ WE Peel and James Goudkamp *Winfield and Jolowicz on Tort* (19th edn Sweet & Maxwell 2014) 60.
- ⁸ Joanne Conaghan and Wade Mansell *The Wrongs of Tort* (2nd edn Pluto Press 1999) 164–5.
- ⁹ *ibid* 166.
- ¹⁰ The defendant was convicted of assault occasioning actual bodily harm. The case has since been held to have been wrongly decided on another ground.
- ¹¹ Alastair Mullis and Ken Oliphant *Torts* (Palgrave Macmillan 2012) 219.
- ¹² For more on the miner's strike, which forms the backdrop to *Thomas v National Union of Miners*, see the BBC News 'on this day' resource for 12 March 1984 <http://news.bbc.co.uk/onthisday/hi/dates/stories/march/12/newsid_2540000/2540175.stm>.
- ¹³ Conaghan and Mansell **n8** 170.
- ¹⁴ *ibid*.
- ¹⁵ *Ireland* predates the widespread use of mobile phones and so the calls were made to the claimants' 'landline' phones.
- ¹⁶ See **section 15.5**.

¹⁷ This is different still to the situation where the defendant entirely innocently locks the claimant in a room (for which there will likely be no liability) and to where a defendant ought to have known that there was someone in the room (in which case there will be a claim in negligence). The law distinguishes between the situation where you lock the door knowing that someone *is* inside (false imprisonment), where you lock the door knowing that someone *might* be inside (which we tend to call (subjective) recklessness—but which will, it seems, still meet the intention requirements of false imprisonment)—and the situation where you lock the door not thinking that someone might be inside but when you *ought* to have known this (negligence).

¹⁸ Sadly, Mrs Esegbona died a week later after she (again) attempted to self-extubate herself. The NHS Trust was found negligent in failing to give the nursing home sufficient advice in relation to her treatment.

¹⁹ Despite ultimately winning his case, the claimant had to pay all his costs for the original trial (at which his claim was unsuccessful), and recovered just 25 per cent of his costs for the appeal.

²⁰ See further Mark Lunney's interesting discussion of the historical and commercial context of this controversial case, including an explanation for the misprinting of the claimant's name—as Robinson rather than *Robertson*—in the authorised report of the Privy Council: 'False Imprisonment, Fare Dodging and Federation—Mr Robertson's Evening Out' (2009) 31 Sydney Law Review 537.

²¹ Paula Giliker and Silas Beckwith *Tort* (Sweet & Maxwell 2008) 353.

²² *R v Deputy Governor of Parkhurst Prison, ex p Hague* established that a prisoner 'cannot maintain an action for false imprisonment against the [prison] governor even if he is deprived of any limited degree of freedom which he usually enjoys under the prison regime. His detention anywhere within the prison is lawful' (*Iqbal* at [62]).

²³ Thus if the father and daughter, in the example at the start of this chapter, were found by the security guard before they realised they were imprisoned, their damages for false imprisonment (assuming the other elements of the tort can be established) would be reduced accordingly.

²⁴ The claim for false imprisonment was rejected by the Court of Appeal and was not considered by the House of Lords. The claimant accepted that if the House of Lords found that there was no infringement of her rights under Art 5 then her claim for false imprisonment must also fail, as her containment within the cordon would be justified by the lawful exercise of police powers (at [11]).

²⁵ It may also be that there are other avenues to compensation in such a case: e.g. an action for breach of statutory duty, negligence, misfeasance in public office (*Karagozlu v Commissioner of Police for the Metropolis* [2006]) or using the HRA.

²⁶ *Lumba* was followed just two months later by *Kambadzi v Secretary of State for the Home Department* [2012] on a similar issue. The appellant was a foreign national who had been detained pending the making of a deportation order. However, the Secretary of State had not complied with a policy on the frequency of review of the detention. A majority of the Supreme Court held that the appellant's detention was unlawful (and that the appellant had been falsely imprisoned) during the periods where there had been no review. Though the full facts of the case had yet to be argued, if it was found that the appellant would have been detained even if his case had been reviewed, the court held that it is likely that only nominal damages would be awarded. Lord Brown (with whom Lord Rodger agreed) dissented on the basis that *Lumba* did not compel the majority's decision as it concerned a substantive entitlement under a policy, not a procedural one, and because it held that not every breach of public law will result in the detention being unlawful.

²⁷ In **section 15.4.3**.

²⁸ There has been some uncertainty as to whether the defence of contributory *negligence* applies in cases involving intentional harm (see e.g. *Murphy v Culhane* [1977]; **Reeves v Commissioner of Police for the Metropolis** [2000]). However, in *Standard Chartered Bank v Pakistan National Shipping Corp (No 2)* [2002] Lord Rodger suggested that contributory negligence was not applicable in cases of intentional wrongdoing (at [43]–[45]) and more recently in *Co-operative Group (CWS) v Pritchard* [2011] Atkins LJ held that the defence of contributory negligence does not apply to the torts of assault and battery (at [62]).

²⁹ See e.g. *R v Lincoln* [1990] concerning ‘rough and tumble’ on the football pitch. There is no battery when the claimant has voluntarily taken the risk of touching. Consent will not be valid when it is to actions which are deemed contrary to public policy (see *AG’s Reference (No 6 of 1980)* [1981] and *R v Brown* [1994]).

³⁰ This is because though consent is treated as a ‘defence’ to the trespass torts considered in this chapter, it is in fact central to the operation of the trespass torts and as such it is not a ‘true’ defence (*Freeman v Home Office (No 2)* [1984]).

³¹ This does not mean that the patient has no claim where they have been given inadequate information, e.g. not being fully informed of the risks of the medical procedure. However, it may be that the claim is more appropriately brought in negligence. The UK Supreme Court has recently confirmed the practice of a patient-friendly, ‘informed consent’, approach to a doctor’s failure to warn of risks adopted by the General Medical Council (GMC)—see **Montgomery v Lanarkshire NHS Trust** [2015] discussed in **section 8.3.2.1**.

³² In *Re MM (An Adult)* [2007], Munby J held that there is ‘no relevant distinction between the test in s 3(1) of the Act and the pre-existing common law’ (at [74]).

³³ Shaun Pattinson *Medical Law and Ethics* (6th edn Sweet & Maxwell 2020) ch 5.

³⁴ Celia Wells ‘On the Outside Looking In: Perspectives on Enforced Caesareans’ in Sally Sheldon and Michael Thomson (eds) *Feminist Perspectives on Health Care Law* (Cavendish 1998) 237. See also Emma Cave, ‘Protecting Patients from their Bad Decisions: Rebalancing Rights, Relationships, and Risk’ (2017) 25 *Medical Law Review* 527.

³⁵ For an application of the principles in *Re MB* (and the first published judgment approving a caesarean section since the enactment of the Mental Capacity Act 2005), see *Re AA* [2012].

³⁶ Necessity is most often used where the claimant is temporarily unable to consent. However, it has also been applied in other situations (see e.g. the extended discussion in *Re A (Conjoined Twins)* [2001] and, in relation to false imprisonment, see *Bournewood; Austin and other v Commissioner of Police of the Metropolis* [2007] (CA)—note that the House of Lords did not discuss the application of necessity).

³⁷ This may be sensible in relation to *negligently* inflicted psychiatric injury—not least because (in Lord Hoffmann’s view) the tort in *Wilkinson v Downton* was only established in order to circumvent a now defunct decision (*Victorian Railways Commissioners v Coultas* [1888]) which *prevented* recovery in negligence for such injuries. Though see Lady Hale and Lord Toulson’s rejection of this as an ‘interesting reconstruction [that] shows the pitfalls of interpreting a decision more than a century earlier without a full understanding of jurisprudence and common legal terminology of the earlier period’ (**Rhodes** at [61]–[63]).

³⁸ *Wilkinson v Downton* was approved by the Court of Appeal in *Janvier v Sweeney* [1919].

³⁹ See further Denise Réaume ‘The Role of Intention in the Tort in *Wilkinson v Downton*’ in Jason Neyers, Erika Chamberlain and Stephen Pitel (eds) *Emerging Issues in Tort Law* (Hart 2007) 533.

^{40.} A battery claim in relation to the touching of Alan's penis was allowed by the Court of Appeal (and was not appealed by the Home Office). The claimants also argued there was a breach of their Art 8 rights (right to private and family life). This was rejected by the House of Lords, but upheld in the ECtHR which unanimously held that there had been a breach of both their Art 8 and 13 rights (*Wainwright v UK* [2006]). The privacy aspects of the case are discussed in **section 16.5**.

^{41.} Jonathan Morgan 'Privacy Torts: Out with the Old, Out with the New' (2004) 120 Law Quarterly Review 393, 395.

^{42.} On the role of the civil law in addressing the harms of image-based sexual abuse, see further Clare McGlynn and Erika Rackley 'Image-based Sexual Abuse' (2017) 37 Oxford Journal of Legal Studies 534; Horsey and Rackley **n3** and see *FGX v Gaunt* [2023].

^{43.} As Lady Hale and Lord Toulson note:

Recklessness is a word capable of different shades of meaning. In everyday usage it may include thoughtlessness about the likely consequences in circumstances where there is an obvious high risk, or in other words gross negligence' going on to refer to the Law Commission's wording whereby:

A person acts recklessly with respect to a result if he is aware of a risk that it will occur and it is unreasonable to take that risk having regard to the circumstances as he knows or believes them to be. (Consultation paper on Reform of Offences against the Person (LCCP 217, 2015)). (at [84])

^{44.} Ying Khai 'The Rule in *Wilkinson v Downton*: Conduct, Intention and Justifiability' (2015) 78 Modern Law Review 349; Dan Tench 'Case Law: *OPO v MLA*, Shock and Disbelief at the Court of Appeal' *Inform's blog* 13 October 2014.

^{45.} MLA 'Notice of appeal in the Supreme Court of the United Kingdom' 6 November 2014.

^{46.} Ian Cobain and Matthew Taylor 'Ex-wife of well-known performer obtains injunction against book to protect son' *The Guardian* 11 October 2014.

^{47.} Dan Tench 'Case Law: *OPO v James Rhodes* (formerly MLA): Pianist's book unbanned, no intention to cause distress' *Inform's blog* 20 May 2015.

^{48.} The defendant pleaded guilty to four counts of possession of indecent photographs of a child (the claimant).

^{49.} Noel Titheradge 'Damages awarded in "sexting" case for the first time' BBC News, 30 November 2015.

^{50.} David McClenaghan in Matthew Weaver 'Woman awarded £25,000 sexting damages in legal first' *The Guardian* 30 November 2015.

^{51.} *ABC* was followed in *MXX v A Secondary School* [2022] [150]–[163] though the claimant was ultimately unsuccessful in holding the school vicariously liable for her abuser's actions. See **section 20.2**.

^{52.} This aspect of the Act has been strengthened through the creation of two new offences of stalking inserted into the PfHA as ss 2A and 4A by virtue of the Protection of Freedoms Act 2012 (though see James Gregory 'Stalking super-complaint launched against police' BBC News, 25 November 2022). Though the Act does not include a formal definition of stalking, s 2A(3) gives examples of behaviours typically associated with it, including following or spying on a person, monitoring their use of the internet or email, loitering and interfering with their property. The introduction of 'Stalking Protection Orders' introduced in the Stalking Protection Act 2019, allows courts to ban perpetrators from going to certain locations and from contacting victims and requires them to seek help.

- ⁵³ The focus here is on civil claims. On the relationship between the criminal and civil aspects of the 1997 Act see Emily Finch 'Stalking the Perfect Stalking Law: An Evaluation of the Efficacy of the Protection from Harassment Act 1997' [2002] Criminal Law Review 703.
- ⁵⁴ See e.g. *AM v News Group Newspapers Ltd* [2012] in which interim injunctions were granted against journalists and photographers to prevent them from waiting outside—so-called 'doorstepping'—the homes of people they wished to photograph or interview. On the impact of the Act on the activities of the media, see Nicole Moreham 'Harassment by Publication in the Media' *Inform's blog* 26 January 2016.
- ⁵⁵ Section 1A (added by Serious Organised Crime and Police Act 2005) extends the remit of the 1997 Act to include a course of conduct directed at *two or more people* which the harasser knows or ought to know amounts to harassment *and* by which he intends to persuade any person (whether or not one of those mentioned (in s 1A(a))) (i) not to do something that he is entitled or required to do, or (ii) to do something that he is not under any obligation to do (s 1A(c)). In such circumstances, a course of conduct is defined as 'conduct on at least one occasion in relation to each of those persons' (s 7(3)(b)).
- ⁵⁶ The Act does not, therefore, cover one-off incidents, such as the practical joke in *Wilkinson v Downton*, however serious. Though a victim who fears that a single incident of harassing conduct *might* in the future *become* a course of conduct may be able to claim under s 3(1) which provides a remedy for the 'apprehension' of a breach of s 1. See further, David Ormerod, Case Comment: 'Harassment: Whether Two Incidents of Harassment Constitute a Course of Conduct' [2000] Criminal Law Review 580 discussing *Lau v DPP* [2000].
- ⁵⁷ See e.g. *ABK v KDT & FGH* [2013]; *AXB v BXA* [2018] and generally Horsey and Rackley **n3**.
- ⁵⁸ See **section 17.3**.
- ⁵⁹ Unlike in defamation, see **section 17.6.1**. See *Merlin Entertainments LPC, Chessington World of Adventures Operations v Cave* [2014].
- ⁶⁰ It may be that in cases of public figures, a general public interest in exposing the wrongdoer would be sufficient to make the conduct reasonable—see discussion of s 1(3)(c) of the 1997 Act later.
- ⁶¹ As required in defamation, see **section 17.3**.
- ⁶² The amount of damages awarded in injury to feelings cases typically range from £800 to £42,000, with only the most 'exceptional cases' exceeding £42,000 (Presidential Guidance 'Employment Tribunal awards for injury to feelings and psychiatric injury following *De Souza v Vinco Construction (UK) Ltd* [2017] EWCA Civ 879').
- ⁶³ Again, unlike in defamation, see **section 17.5**.
- ⁶⁴ Brett Wilson '#MeToo, naming and shaming: a risky business' *Inform's blog* 2 November 2017.
- ⁶⁵ See also Iain Wilson 'Case Law: *Suttle v Walker*, Facebook "Keyboard warrior" order to pay £55,000 libel and harassment damages' *Inform's blog* 30 January 2019.
- ⁶⁶ 'News: Harry Styles harassment case, photographers consent to permanent injunctions' *Inform's blog* 11 March 2014; Natalie Peck 'Harassment and injunctions: Cheryl Cole' *Inform's blog* 7 July 2011.
- ⁶⁷ See **section 17.3**.
- ⁶⁸ See further Tim James-Matthews 'Case Law: *Sube v News Group Newspapers*, Harassment claims against media publishers dismissed' *Inform's blog* 27 May 2020.

⁶⁹ Joanne Conaghan 'Enhancing Civil Remedies for (Sexual) Harassment: s 3 of the Protection from Harassment Act 1997' (1999) 7 Feminist Legal Studies 203, 207–8.

⁷⁰ *ibid.*

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